

Module Two

Law of Persons

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Chapter One

The Concept of Personality

Objective:-

In this chapter the distance students will be able to:-

- ☞ Understand the concept of personality;
- ☞ know the meaning of the term "person";
- ☞ Understand the attributes of personality;
- ☞ know the types of persons, and
- ☞ know the similarities and differences between physical persons and artificial persons

1.1 The Meaning of the term "person"

Dear distance student, in your lesson on Introduction to Law you have studied that law is an instrument that regulates the relation of persons. By determining the respective rights and duties of persons, law helps to create smooth relation in the life of the society.

However, in the language of the law the term "person" is not used in it's literally or usual meaning. In the field of law the term has acquired a wide and technical meaning. It refers to all entities (human and non-human) to which personality (i.e. the ability to hold rights and duties) is ascribed or attributed to them by law. It refers not only to human beings but also to other entities or things to which personality is given to them by law for reason of convenience. All entities or

things capable of having rights and duties are persons in the eyes of the law. So, the criteria in law to determine whether a certain entity is a person or not is the ability to hold rights and duties irrespective of the fact that it is human being or not. If a thing is capable of having rights and duties by law, then in the language of the law that thing is a person and subject to regulation by law.

What things are to be considered as persons is determined by law. It is the law that determines things or entities to be considered as persons. For the purpose of convenience and control the law designates entities to be considered as person subjects it for its control.

Generally, the concept of personality is a fundamental one in law. It is the most fundamental one as it provides for the definition of those beings or things, either natural or artificial, which will be bound by the law. If an entity or being is considered as person capable of having rights and duties, the whole field of law will be applicable to him or it; if not, it will not be bound by the law.

1.2 Types of Persons

Those entities or beings that are regarded by the law as persons are of two types.

These are:-

- a- Physical persons, and
- b- Artificial persons

A. Physical Persons:-

Also known as natural persons, refers to human beings. In the earlier times where there was the slave owning practice all human beings were not considered as persons by law. Slaves, which were persons in the strict sense of the term, were not considered as persons by law. They were considered as property of their masters and they used to have no rights and duties under the law. Now a

day the dichotomy of human beings in to slave and freeman has disappeared and all human beings are considered as person by law and are subjects of it. So, every human being acquires rights and duties at some point in his life and losses them upon death.

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B. Artificial Persons (Also known as fictitious persons; juristic persons; legal persons; moral persons, bodies corporate)

Artificial persons are non-human entities which are recognized by law as persons and given certain rights and duties and are treated more or loss like human beings for the sake of convenience in control and makes them the subject of rights and duties. The most common artificial persons are:-

- ☞ The state and it administrative units
- ☞ Religious groupings like the Ethiopian Orthodox Church (EOC), the Evangelical Church, the Catholic Church, Islamic council, etc.
- ☞ Business organizations like the Ethiopian Air Lines, Commercial Bank Ghion Hotel.
- ☞ Civic organizations established for philanthropic purpose like Action Aid Ethiopia or the Ethiopian Human Rights Council (EHRCO)
- ☞ Professional Associations like the Ethiopian Lawyers Association, the Ethiopian Accountants Association.
- ☞ Committees
- ☞ Trusts
- ☞ Endowments

These are the most common artificial persons recognized under Ethiopia law. They have their own personality distinct of the personality of the human beings that constituted or formed them.

Dear distance student, you will study in detail the importance of artificial personality, how it is acquired and the basic features of artificial persons in the last chapter. Here let us consider the similarities and differences between physical persons and artificial persons.

1.3. Similarities and differences between physical persons and Artificial Persons.

Dear distance student what similarities and difference do you see between artificial persons and physical persons? Please try to list down the similarities and differences before you proceed to read the following passage.

Both physical persons and artificial persons are persons in the legal sense of the term and as such they are subjects of rights and duties as defined by law. Both share the basic features of personality. However, there are striking differences between them.

To begin with, physical persons are animate living creatures that have their own will, volition and the faculty of thinking. On the other hand artificial persons are imaginary inanimate non-living creatures that have no their own volition and will. They do not as such physically exist unlike physical persons. They can not act by their own and exercise their rights and duties. They act through human agents. Artificial persons are represented by physical persons in the exercise of their rights and duties. The managers of business enterprises, directors, chairmen or presidents of different associations, heads of the different government institutions and the employees working therein are nothing but agents of the artificial person for whom they are working for. When the manager of an enterprise, or the prime Minister or the President or the head of any government

agency acts in its official capacity it is acting in the name and on behalf of the institution. It is in this fashion that artificial persons exercise their rights and duties.

Furthermore, although artificial persons are subjects of rights and duties, there are certain rights and duties that do not apply to artificial persons because of their inanimate nature. For instance such rights like the right to remain silent, the right to marry and found a family, the right to life does not apply to artificial persons. Such types of rights are applicable purely to physical persons because of their nature.

1.4. Attributes of personality

By attribute of personality we are referring to the characteristics, qualities or distinguishing features that entities with legal personality are endowed with. Once an entity or a unit is recognized as person by law, then it will have certain attributes from the mere fact of it being recognized as a person. Some of these are the following:-

1. The ability to sue or be sued in its own name. Once an individual human being or an artificial person acquired its personality after fulfilling certain requirement it can bring an action against others. Similarly others can institute an action against it.
2. The ability to own and administer property. Only a person can own and administer properly. Both physical persons and artificial persons can own and administer properly of any kind, i.e. tangible or intangible, movable or immovable.
3. The ability to enter in to contracts. An entity whether a human being or any other entity, once it acquired personality, it can enter in to contracts

and acquire rights and duties for itself.

4. The obligation to pay taxes. Once an entity acquired a personality as per the conditions prescribed by law, it will have the obligation to pay tax on the income they earn and the property they own, as defined by the tax law.
5. Having name. Every person, physical or artificial is identified by name.

These are some of the attributes that physical persons and artificial persons commonly share. There are also specific attributes that are applicable only to physical persons or artificial persons. The ability to make will, holding fundamental rights and duties are for example, attributes of only physical persons.

1.5. The importance of artificial personality.

Dear distance student, what do you think is the reason for creating the system of artificial personality? Why do we need the system of artificial personality? What purposes does it serve? Why is personality given for the state and its administrative bodies? Why is personality given for business and non-business associations or organizations and other grouping of human beings?

The system of artificial personality is created by law for the following purposes:

1. For the purpose of continuity in transaction.

Dear distance student, have you ever noted why the laws issued during the term of one parliament continue to be binding during the term of the next parliament?

Have you wondered why acts done during the reign of one president or prime Minister or any other official continue to have effect despite the change in the identity of the president or the prime Minister or the official who was in charge? This can be explained only by the personality that the parliament, the office of the president, the office of the prime minister or the individual government office has. Every act done by members of the parliament, or by the president or prime minister is attributed as an act of the office itself. This helps ensure continuity in transactions by persons in office.

2. For the purpose of convenience in control

Human beings make innumerable activities individually and in such cases the law controls or regulates their individual conduct. However, human beings also act in group. Two or more individuals may come together, pool their resources, form an organization and engage in a certain type of activity-business activity, etc. Sometimes, the size of the members of the organization gets huge and some of the members engaged in the activity may be inaccessible for control. For instance individuals from different corner of the world may become a share holder in a certain business enterprise that operates here in Ethiopia. In such cases it is convenient for the purpose of control to give personality to the group as a unit or individual and ascribe all the activities of the group to it and make it a subject of law.

When the size of the group becomes large, considering the group as an entity having its own distinct personality from the personality of its members simplifies the task of controlling the activity of the group. Rather than controlling or regulating hundreds or thousands of individuals engaged in similar activity it is easier to control a single entity. The group once given personality will have its own rights and duties under the law.

3. The benefit of limited liability

This is particularly important in the field of business activity. An individual may engage in a business activity. If in the process of his activity he incurs a debt, all of his personal assets may be used to satisfy the debt and it may cause him to lose all of his assets if he has a lot of debt. The individual can, however, avoid this problem by establishing a business organization. If the individual establishes a business organization by earmarking some capital, the organization will have its own personality. All the debts incurred and the rights acquired in the process of the trade are considered as the debts and rights of the organization itself. It will be up to the organization to pay its debts. Creditors will direct their actions only against the business organization and cannot proceed to property of the owner of the organization. The owner's liability is limited only to the extent of the amount he put to establish the organization. The liability of the organization will not affect other assets that the owner may have. The only thing the owner may lose is the capital he contributed to establish the organization. This system encourages individuals to invest their capital without being inhibited by the fear that their whole asset will be taken away for debts they incur in connection with their business activity.

1.6. Commencement of Artificial Personality

The way how artificial personality commences depends on the type of the artificial person itself. There is no uniform rule concerning the acquisition of artificial personality. It all depends on the type of the artificial person mentioned above.

If we look at the state, in order to be considered as a person, it must fulfill all the requirements under international law. It must have sovereign territory, population and an established government or a political system. If it fulfills all these, then it will be considered as a person under international law. On the other hand the various state organs derive their legal personality from establishing domestic legislations.

If we consider civic associations, they acquire personality when they fulfill all the requirements provided under Articles 408-414 of the Civil Code and register within the Ministry Of Justice Or Regional Justice Bureaus.

Business organizations in the same way acquire personality when they fulfill all the requirements under the commercial Code and register with the Trade and Industry Ministry. Some business organizations, i.e, public enterprises, however, acquire personality not by registration but by establishing legislation to be issued by the Council of Ministers pursuant to the Public Enter Praises Proclamation.

Review Question

1. What do you understand by the term "person"?
2. Write out the similarities and differences between physical persons and artificial persons.
3. Why it is necessary to create the system of artificial personality?
4. How is artificial personality acquired?

Chapter Two

The Commencement of Physical Personality

Objective: - After completing the study of this chapter the distance student will be able to:-

- ☞ Know the moment physical personality commence as a matter of principle and exception.
- ☞ define birth
- ☞ know the conditions under which a conceived child acquires personality

2.1 Introduction

Dear distance student, when do you think the personality of human beings commence? In other words, when does human being start to exist in the eyes of the law and become the subject of rights and duties? What exactly is the moment human beings acquire rights and duties? At the time of conception? At the time of birth? Or after birth? In this chapter we shall try to answer this question. And the answer for this question is found in the first two provisions of the Ethiopian Civil Code. Generally, as per these provisions physical personality commences at the time of birth (Art 1). It is also provided under Art 2 of the Civil Code that exceptionally a conceived child may also have personality let us now consider them in detail.

2.2. Birth

As a matter of principle personality begins with birth. This is clear from Art.1 of the Civil Code which provides.

"The human person is the subject of rights from its birth to its death."

So, in this respect the beginning of physical and legal existence are simultaneous. This rule applies today to all human beings without distinction, although this was not always true. In the ancient legal traditions human beings could be born in slavery and thus deprived of the status of a person. But in this era of human

rights the distinction between the free man and the slave has disappeared and the rule that all human beings are persons by birth is generally true.

But the problem is that the Codes do not define the term "birth". When do we say that the child is born? Jacques Vanderlinden in his book on The Law of Physical Persons defines birth as the complete extrusion of the child from his mother's womb, whether in a natural way or by Cesarean section. This is a definition based on early Roman medical science. Now a day we have children developed in a test tube and it is necessary to adopt a new definition of the term birth. It may be better to define birth as the condition of being wholly brought in to separate and independent existence. So, a child is said to be born at the moment he starts to respire by himself after he comes out of his mother's womb or test tube.

In the Ethiopian legal system birth alone is sufficient to confer personality; No other conditions are laid down. This differentiates Ethiopian law from the laws of many other countries. In some other legal systems there exists either a single or double condition required for the new born child to acquire personality: in most cases, he must be born alive and must be viable.

As far as the condition of being born alive is concerned, one does not see clearly the justification. If one considers a new born child, he is either alive or dead at the moment of his birth. If he is alive, there is no problem and becomes a person in the full sense of the term unless the law requires also the condition of viability. If he is dead at the moment of his birth, death has preceded live birth and it is clear that he could not acquire personality as he has lost it already. In other words, it seems obvious that a child, in order to acquire personality by birth, must be born alive.

The second condition required by some legal systems, is that of viability. Viability is defined as the possession by the child of the aptitude or potential to live. This requirement can be justified by the fact that if the child is not going to live, there

is no need to give him rights or duties with the inevitable consequences on the pattern of rights and duties governing his next of kin. In the earlier times this requirement applied mainly to premature children who were delivered so early that they clearly had no chance of survival. It was extended to all kinds of anomalies which could prevent the development of life. The requirement of viability is useful as there is no need to give rights and duties to a child, if one can decide at birth that it shall not be able to live as a human being.

There is also a third requirement which is found in some foreign legal systems which provides that the child must have a human figure. This condition tends to exclude monsters and physically disfigured persons from the category of physical persons. The problem here is defining monsters. It is difficult to determine what separates monsters from the human. The difficulty lies in the fact that the conception about monsters changes with time and the progress of medical science. The dividing line between monsters and humans is imprecise.

As we have said above under Ethiopian law birth alone is sufficient to acquire personality. The law does not attach any other condition. The above conditions are found only in other legal systems. Our Civil Code does not make any explicit reference to such types of conditions as a prerequisite to acquire personality upon birth. The sole fact of being born is enough to acquire personality under Art 1 of the Civil Code.

An interesting point worth noting here is that Art. 1 of the Civil Code makes physical persons only the subjects of rights. Does it imply that they have no obligations of whatsoever? Does it mean that no obligations apply to physical persons? Obviously the answer is in the negative. As we have seen in chapter one personality by definition is a bundle of rights and as well obligations. Right and duties are inseparable. They are two sides of the same coin i.e. personality. It is a problem of translation from the French version of the draft. It is perhaps better to say **subject of rights and duties** which would reflect the idea behind personality.

So, it is appropriate to read in to Art.1 of the Civil Code the idea of duties by way of interpretation to make it complete and meaning full.

2.3. Conception

As we have seen above in principle physical personality commences at the time of birth. And the moment a child is born he will acquire personality. However, there are cases where it seems that birth is not by itself a satisfactory criterion to confer personality. The most obvious is the case where the father of a conceived child dies. The succession of the father opens before birth and the conceived child, not being a person, as he is not yet born, he will not be able to take part in the succession of his deceased father.

To avoid this types of unjust and unfair situation the law, since Roman times, has come up with a solution. Accordingly, the law has permitted for the conceived child to have personality. But for the conceived child to acquire personality it must fulfill the following conditions:-

- it must have an interest that justify the granting of personality at conception
- it must be born alive, and
- it must be viable.

If the conceived child fulfills these three cumulative conditions then personality will be extended to him. Let us examine each of these conditions in detail.

1. The child must have an interest that justifies the extension of personality.

It is not always that personality is granted to the conceived child. Since, as indicated under Art.1 of the Civil Code, in principle physical personality commence only at the time of birth, it is only when there exist a justifying ground

that personality is extended to the conceived child only in exceptional circumstances. It is only when the conceived child has an interest which needs protection that personality is extended to him. In other words no conceived child can be granted personality if his interest does not require it. But what is exactly the meaning of the term "interest"? Is it identical with right? No, the interest is not exactly identical with right. By interest we are not referring only to rights. Restricting personality to the possession of rights without duties would first of all be in contradiction with the notion of personality as being composed of rights and duties. There are cases where the fact of holding rights is bound to that of having simultaneous duties, the balance between the two beings highly favorable to the conceived child. This would be the case for instance in matters of succession, where the heir to an estate is bound to pay heavy succession tax at the same time that he acquires the rights which are part of the estate of the deceased person. Without paying the tax he will not be able to enjoy the rights he could acquire. Thus the acquisition of rights is clearly connected with corresponding duties (e.g. paying tax); one would at the same time prevent him from taking advantage of the connected rights. This does not seem to be the purpose of the legislator who used a general word like interest in order precisely to convey a general idea containing the sum of both rights and duties which could be attributed to the conceived child. For example, it would be in the interest of the conceived child to be an heir to a succession of which the assets would, by far exceed the liabilities. In such case he would, at the same time, have rights and duties, but the fact of being considered as a person would be in his interest.

Finally one must also note the particularity of the personality granted to the conceived child. Such personality is granted to the conceived child in particular situations where his interest so requires. Thus, if the conceived child is considered as a person for the purpose of accepting a donation, it will not automatically become a person until his birth. He is only considered a person for the purpose of accepting the donation and upon him later on, of which the debts exceed the assets, his personality will not be invoked in connection with that

succession while it has been invoked earlier in connection with the donation. Thus, the conceived child may be considered as a person but this personality lasts only the time needed to assess his rights when his interest so requires.

2. The child must be born alive

In order for the child to benefit from the extension of personality during conception it must be born alive. Interest alone does not suffice to extend personality for the conceived child. As indicated under Art, 2 of the Civil Code the child need to be born alive in order to benefit from the extension of personality during conception. Thus, even if the interest of the child in his mother's womb requires that personality be extended to him, this will be effective only if he is born alive. But the requirement of being born alive seems to have no importance given the viability requirement which we are going to look in the next paragraphs. Obviously if the child's viability is to be tested in order to be considered a person, he must necessarily be born alive. If he is born dead, he will certainly not prove viable.

3. The child must be viable.

Again in order for the child to benefit from the extension of personality during conception, not only it has to be born alive, but also it must be viable. By viability we mean, it must have the aptitude or the potential to live or survive. As stated earlier this requirement is justified by the fact that, if the child is not going to live, there is no need to give him rights or duties with the inevitable consequences on the pattern of rights and duties on his next of kin.

But how do we know whether a newly born child is viable or not? What is the criterion to say a newly born child is viable or unviable? Art. 4 of the Civil Code provides a solution to this problem. This provision provides some presumption that helps one to determine if a newly born child is or is not viable. According to the rule laid down under Art. 4(1) a child is deemed to be viable if it survived for full 48 hours after birth. Once the child survived for full 48 hours after birth it is presumed to be a person from the moment of conception. This presumption is irrefutable. No proof can be admitted to the contrary to show that the child is unviable even if it survived for 48 hours. However, if the child dies before the expiry of the 48th hour, there is the presumption that he is not viable and consequently the child will not be considered as a person even if his interest has required it during conception. But if the child died before the 48th hour due to an external factor, the child is still deemed viable even if it died before the 48th hour. In other words the child is deemed unviable only if it died before the 48th hour due to an internal factor. The child is said to have died due to internal factor if it died because of a deficiency or defect in his constitution or make up, for example a defect in the lung, in the blood circulation system or may be a defect in his digestion system. So, if the child died before the 48th hour due to these types of internal problems, then the child is considered as unviable. On the contrary if the death of the child before the 48th hour is due to external factor such as accident or intentional killing, the child is deemed viable, even if the child died before the 48th hour. This is based on the belief that the child would have survived had it not been for the intervening external factors. This means the child will be considered viable:-

1. If it survived for full 48 hours, or
2. Even if it died before the 48th hour if the death is due to an external factor.

The child will be considered unviable only if it died before the 48th hour after his birth and the death is due to an internal factor

To sum up, a conceived child whose interest requires the extension of personality will be considered as a person for the purpose of protecting his interest. But how do we know the exact date of conception? In order for the child to benefit from the extension of personality, it is important to know whether he has been conceived on the date the alleged interest was at issue. Otherwise, we will be making the child a beneficiary of a right which he does not deserve. To avoid this type of problem, we need to know the exact date of conception of the child.

To avoid this problem Art.3 of the Civil Code has laid down a presumption fixing the date of conception at the 300th day preceding the birth of the child. As per this provision a newly born child is considered as conceived on the 300th day preceding his birth. Sub-article 2 of the same article makes this presumption irrebutable. Accordingly, no proof (medical or otherwise) can be admitted to show that the child is conceived before or after the 300th day preceding his birth.

However, although the presumption laid down in article 3(1) is irrebutable, Art 3(3) establishes the principle that the rule laid down in Art 3(1) shall have no bearing on the provisions of the law dealing with filiations, in the case where the identity of the father of the child is in issue. This seems to refer to the provision of the various Family Codes that lay presumption as to conception in wedlock and fix the moment of conception between the 300th and 180th day preceding the birth of the child. Thus, in principle, the moment of conception is not necessarily fixed at a certain number of days before birth; it can vary between 300 and 180 days. On the contrary, Art. 3 fix the precise date for the moment of conception. The purpose of Art 3(3) is to avoid what could seem a contradiction between Art. 3 and the Family Codes by reserving the rules laid down in the latter about filiations.

Review Questions

1. When is physical personality acquired as a matter of principle and exception?
2. W/ro Azeb gave birth to a daughter on Meskerem 10 at 6:00 local time. Her husband, Ato Beshah, while rushing to the hospital where his wife gave birth was run over by a car at 7:00 local time. Sometime later W/ro Azeb brought a suit against the driver claiming compensation for herself and for her daughter. The driver admitted liability for W/ro Azeb, but denied liability for the daughter who died on Meskerem 11 at 10:00 local time.
 - ☞ What is the possible argument that can be raised by W/ro Azeb and the driver respectively?
 - ☞ What if the daughter died on Meskerem 12 at 10:00 local time?
3. W/ro Aster gave birth to a baby on Tahisas 24 at 2:00 local time. The baby was born without arms and legs and with only one eye. From the moment of his birth the doctor has to fight for his life and with the help of modern medical science the child lived until 4:00 local time on Tahisas 25. At that moment, however, because of a blockage in the dialysis machine which was supporting his kidney, the child died. The blockage was later found to be due to the fault of the hospital technician who had failed to service the machine correctly.
 - ☞ Do you think that the child will succeed to his father who died four months before his birth?
4. W/ro Ziyin and Ato Habtamu were living for many years as husband and wife after concluding marriage in 1980. In their long years of marital life they were unfortunate to have a child. Meanwhile, Ato Habtamu died due to a car accident on Mekerem 15, 1997. To the surprise of the families of both, W/ro Ziyin gave birth on Nehasie 5, 1998 at 3:00 o'clock in the morning. Even if the child was born alive and healthy it died six hours after its birth which was medically proved to be due to the fault of the mother.

After all these events, the succession of the deceased Ato Habtamu is at issue. W/ro Ziyin is claiming on behalf of her child. On the other hand, relations of Ato Habtamu are contesting her claim.

- Discuss the arguments that can be raised by W/ro Ziyin.
- Do you think that Ato Habtamu's relatives claim have legal ground?
- What would be your ruling if you were a judge?

Chapter Three

Characteristics of Physical Personality

Objective: - after completing the study of this chapter the distance student will be able to:-

- ♣ Know the characteristics of physical persons.
- ♣ Understand the nature of rights of personality
- ♣ Understand and explain the basic rights of personality

3.1. Introduction

Physical persons have certain distinguishing marks that distinguish them from other entities that have no personality. As soon as personality is conferred on human being upon birth or at the time of conception, they become holder of certain attributes which distinguishes them from other entities devoid of personality. These are the characteristics or distinguishing features that every physical person is endowed with when conferred with personality. The characteristics of physical persons include:-

- ⇒ the holding of rights of personality by physical persons
- ⇒ the holding of name
- ⇒ capacity
- ⇒ Residence, domicile and nationality

In the following pages, you will study these characteristics of physical persons.

3.2. The Holding of Rights and duties by physical persons.

As soon as personality begins, all rights and duties under the law are held by an individual, although the exercise of such rights can be entrusted to other persons because of some incapacity which prevents the holder from exercising by himself. The Ethiopian Civil Code deals extensively with the problem of the rights attached by law to personality. They are called rights of personality or individual rights.

Until very recently, the rights of the individual were exclusively considered in constitutions where they were affirmed as against the state much more

frequently than in connection with other citizens. Thus they were found only within the field of public law and not private law. However, based on the general principle of civil law underlying liability for prejudice to another person, individual rights were progressively introduced in to the field of private law.

It should be noted, however, that the incorporation of individual rights in to the Civil Code doesn't prevent the mention of similar rights in the constitution which is the case with the FDRE constitution. The constitutional individual human rights provisions are asserted against the state while those individual rights incorporated in to the Civil Code are asserted against other individuals, as the Civil Code is a body of law governing the relation of private individuals. So, if the violation of individual rights comes from private individuals then its cessation is to be required based on the Civil Code; but if the infringement comes from the state then remedy is to be requested based on public law particularly the constitution.

3.2.1. Principles of Governing the Holding of individual Rights

The Civil Code provides general principles governing the whole area of individual rights. These are

- The absolute equality of all persons in respect to individual rights.
- The fact that the rights of personality are extra-commercium
- The fact that the individual is not free to renounce the rights of personality, and
- The fact that the individual whose liberties are infringed is free to require the cessation of the infringement.

The holding of rights of personality is governed by these general principles. It is subject to these principles that physical persons become holder of rights and duties. You will now turn to study them in detail.

1. All physical persons hold the rights of personality with absolute equality. For a long time in the history of human civilization, inequality was the essence of the law and one was treated in accordance with one's status in society. There often was a different law and a different court according to the status of the individual. The idea of human equality which has now got wide recognition in all legal systems is not very old. All human beings now hold the rights of personality. All human beings are equal as regards the holding of individual rights. However, it must be noted that legal equality is only a first step in which the law points the way for social and economic equality. It is still too often true that men, although equal before the law, are deeply unequal because of different factors.

When we look at the Ethiopian Civil Code provisions that deal with the rights of personality, Art.8 (1) affirms the absolute equality of human beings in holding and enjoying the rights of personality. In this respect no discrimination is made even as regards foreigners. The wordings of Art.8 (1) which starts by saying "Every physical person shall..." and Art 389 of the Civil Code clearly indicate the absolute equality of Ethiopians as well as foreigners in the enjoyment of the rights of personality. The rights of personality belong to all physical persons without any regard to the race, colour, religion or sex of the person.

2. The rights personalities are extra-commercium (Art.9 (1)) which means that they are out of the field of legal transactions. They cannot be the object of contractual transactions. You cannot sell or donate them. At the same time sub-article 2 of the same article provides that no voluntary limitation or renunciation of the rights of personality or the individual rights enshrined in the Civil Code are, not only out of the field of commercial transactions, but also no voluntary limitation is acceptable. Both of the rules indicated in under Art. 9 are intended to protect the individual against himself. The rights of personality incorporated in the Civil Code are not

only rights in the sense of a privilege but also they are duties which persons have to respect without being free to make them the object of legal transaction or to limit them.

Of course one may limit his individual rights in the cases where one has an interest to do so and where such interest has a legitimate character, i.e., is recognized by the laws of Ethiopia. In such case and in such cases only, is the physical person free to limit his individual rights as they are defined in the Code. One has to note here that, in the case of Article 9 (2), the limitations are subject to the existence of legitimate interest, i.e. an interest which is recognized by and protected by Ethiopian laws.

3. Article 10 of the Civil Code provides for remedies in cases where an individual right is the object of molestation. The person who is the victim of infringement of his right can request the immediate cessation of the molestation and ask for compensations from the author of the molestation if damage has materialized. The person suffering from the molestation can ask that it stop immediately and such request as most legal remedies has to be made through the court with a view of obtaining an injunction to this effect. If damage or loss is sustained by the person whose right is infringed he can claim compensation under these relevant provisions of the Civil Code on extra-contractual liability.

Dear distance student, so far you have studied the general rules governing the holding of rights by physical persons. Now you shall turn to study the specific individual rights as enshrined in the Civil Code. These individual rights are classified in to several broad categories. The discussion will follow this classification.

A. Rights concerning the body

Rights concerning the protection of the body of physical persons are found in Articles 18, 19, 20, 22, 25 and 26 of the Civil Code. These rights concerning the human body are not only given to the individual as protection against others, but also to protect the individual against himself. The integrity of the human body is considered by the Code in an abstract way, as a value by itself, which the law has estimated worthy of protection.

To start with Art 18 prohibits a person from disposing of his body part if:-

1. The act of disposition is to be effected before the death of the person, and
2. the result of the act would be a serious injury to the integrity of the body

In other words one is totally free to dispose of one's body as he wishes provided that the disposition is to be effected after death. Again one is also able to dispose of a part of one's body while he is alive provided that the act of disposition does not cause serious injury to the body integrity. In other words what is prohibited by the law is disposing the body during one's life time in a manner that can cause serious injury to the integrity of the body. If the act of disposing the body part is to take place after the death of the individual or even during one's lifetime but without causing serious injury it is not prohibited.

But what would be the sanction or the consequence if a contract is concluded in violation of these conditions? What if an agreement is made by an individual to dispose his body part during his life time in a manner that cause serious injury? Obviously if the contract is performed as agreed that will be the end of the matter. But it may happen that one of the parties may challenge the validity of the contract. In such cases what would be the ruling of the courts? The answer is clear from the wordings of Art 18(1) of the Civil Code which contain the phrase "... shall be of no effect" The contract is void and the court will rule that it is

unenforceable. It will be denied any effect or value.

This is, however, the general rule and there is an exception to it. There is the possibility still to dispose part of the body during one's life time even if it causes serious injury to the body. As indicated under Art 18(8) this is allowed only where the act of disposing the body part is justified by the rules of medical practice. This refers to the numerous cases in modern life where important operations are performed which have as a result a serious injury to the integrity of the body. A person may suffer from serious disease that may need the amputation of the limbs. In such cases, the agreements of the patient to the operation or amputation are valid and have effect.

Art 19 of the Code provides that a person who has entered into contract to dispose his body part during his life time or after death is free to revoke the contract. The only obligation of the individual in this case is to indemnify the contracting party only the actual loss that he has sustained on the basis of the contract. It is important to note here that the liability of the party revoking the contract is only to indemnify actual losses incurred and does not include compensation for moral damage or prejudice.

Apart from the disposition of one's body either in whole or in part, physical integrity may be threatened by medical examinations and treatment. This is recognized by Articles 20-22 of the Civil Code. The position of the law in this regards is that in principle anyone may in any circumstance refuse to submit himself to a medical or surgical examination or treatment. The individual is free not to submit himself for medical examination. But such freedom of the individual is restricted in the following four ways:-

1. Public interest stands above individual liberty, in the sense that no one can refuse to submit himself to physical examination or vaccination or any similar measures, when he is required by laws or regulations concerning the public interest Art 20(2). No freedom of right is absolute.

There are always limitations imposed on rights or freedoms for the sake of the public. Sometimes an epidemic may occur and in order to prevent the spread of the epidemic the concerned government organ may issue a regulation requiring all residents in a given locality to take vaccination. In such cases the individual cannot invoke his freedom not to submit himself for the vaccination.

2. Minors or interdicted persons can always be submitted to physical examination or treatment by their guardant provided the treatment or examination is beneficial to his health (Art. 20(3)).
3. Where there is no abnormal risk or danger in the examination or treatment but the individual refused it, such individual shall not be able to avail himself of the illness or infirmity which the treatment could have prevented, eliminated or lessened (Art. 21). A person may be required to submit himself for medical examination voluntary, but if he refused he will not be able to invoke the disease or incapacity that resulted but which might have been held if it were not for his refusal to submit himself for the examination.
4. If one refuses to undergo an examination of which the purpose is to establish certain facts and which do not involve any serious danger for the human body, the courts can consider as established the facts which were to be ascertained through the examination. The individual may be required to submit himself for medical examination to ascertain a certain alleged fact but if he refuses to submit himself for such purpose, the court can conclude the existence of the fact which was to be ascertained by the examination. For instance the court may request the accused to undertake examination to proof whether he is sane or to find an indication as to whether he has raped a girl. In such cases if the individual refused to undertake the examination, then the court can presume that he is sane or that there exists indication as to fact of rape by the individual.

Another right of individual in connection with his body concerns the

disposal of his body after death (Art. 25 and 26). As soon as an individual has the capacity to make a will, i.e., if he is a minor, as soon as he has reached 15 years of age and if he is a judicially interdicted person after the termination of his interdiction, he is empowered, under Art. 25, to prescribe the conditions of his funeral. He may among other things, appoint one or more persons who will have as a duty to ensure that his decision concerning his funeral is respected. The person so appointed or any other person who has material or moral interest the case, can ask the courts for the enforcement of the will of the deceased person as to the conditions of the funeral. The words "failing such" in Art. 25(3) seem to imply that the person appointed by the deceased are, provided they exist, competent to the exclusion of all others and that other possible persons with justifiable interest can intervene only if no one has been appointed. However, this does not seem to be the case. The article should be understood as giving also to the unappointed persons who can prove an interest the power to enforce through the courts the last will of the deceased, in cases where the appointed persons are negligent their duties.

In the case where the deceased person has not left any special will insofar as his funeral is concerned, his surviving spouse or his nearest relatives are entitled to carry it out as they wish (Art. 26). If none of these persons is present or known at the time of death, anyone may take the initiative in this respect. Finally if a contestation arises may be as between the various relatives who have different ideas as to the way the funeral should be made, the matter can be taken to the court of the place of the death by the most diligent party.

B. Rights Concerning Privacy

With the constant increase in social intercourse, due, among other things, to the

progress in technology, the sphere of privacy of the individual has been constantly diminishing. This has reached a point where it was felt necessary to ensure to the individual some legal protection against the encroachment of his privacy. There is an ultimate sphere of privacy which is defined by the law and which no one is allowed to penetrate without the permission of the individual concerned.

In the Ethiopian Civil Code rights concerning privacy are found in Articles 11, 13, 27 to 31.

Article.11 deals with two problems, the one concerned with the privacy of the individual and the other with his freedom of action. We are concerned here about the former. It protects individuals against illegal searches. Thus searches are not forbidden as long as they take place in accordance with the law. It should be noted here that we are in the field of law that governs private relations and this provision does not give us the meaning it has in the field of public law, particularly criminal procedure or constitutional law.

The privacy of the individual is also protected by Article 13 of the Civil Code which prevents the violation of the domicile of a physical person. The provision prohibits not only searches, but also the mere fact of entering somebody's domicile.

The right of the individual to his privacy can be limited by the law (in the case of legally authorized searches) and by the individual himself who is free to accept the entrance of other people in his domicile at his own will.

Articles 27 to 30 establish the principle that not only the person of the individual is protected against possible violations, but also that special protection is granted by the Code to the image of the person. In this respect one could question the meaning of the word image. The word image can be defined as any

artificial representation of the external form of a person such as Photography, Portrait, Sculpture, Cartoons, etc.

What the law prohibits is:-

- The exhibition of the image in a public place, thus not preventing its being shown in a private house.
- The reproduction of the image.
- The offer of the image for sale.

A person can not exhibit, reproduce or offer for sale the image of another person without his consent. However, if the person concerned gives his consent then the prohibition will be lifted.

There are, however, cases where the consent of the concerned person is not necessary to reproduce the image of an individual. The image of a person can be reproduced even if he has not consented to. The consent of the individual is not necessary when:-

- ☞ The reproduction is justified by the notoriety of the person or by the public office which he occupies, or by the requirement of justice or of the police, or by a scientific, cultural or didactic interest;
- ☞ The reproduction is done in connection with facts, events or public ceremonies st or which have taken place in public.

It should be noted that it is only the prohibition to reproduce which fall under the exception to the requirement of consent. It does not include the exhibition in public place or offer for sale. As a result one might say that in these cases, the consent of the interested person is always required.

As for the possible sanctions in case of violation the rights of the individual under Article 27, they are considered in Article 29 which deals only with cases of public exhibition and offer for sale and not with the cases of reproduction. Does

this mean that there is no sanction when there is unauthorized reproduction? That should not be, and one must proceed by analogy and assume that remedies will be identical in all cases of violation. Thus a person whose right under Article 27 is violated may:

- ☞ Demand that the illegal action cease immediately; and
- ☞ Ask the courts for the payment of damage. The damage can only be awarded if equity so requires and within the limits of the enrichment derived by the person who is responsible for the action; and
- ☞ Ask the court for moral damages, in the cases where the illegal action does not cease immediately when its cessation has been demanded.

Finally the Code deals with cases where the person whose right under Article 27 has been violated is not in a position to manifest his will (Art. 30), for instance when the person is dead, absent or an inmate of a medical institution. In such cases, his rights are vested in his relatives. But they can only exercise his rights in so far as the violation of the preceding articles results in prejudice to the honor or reputation of the deceased person.

The competent relative is in the first place, the spouse of the deceased person. In the absence of the spouse the nearest descendant, or in default of a descendant, the nearest ascendant will be competent to exercise the right. In the case of the existence of many descendant or ascendant the eldest ascendant will represent the deceased person.

Article 31 of the Code protects the privacy of the contents of the correspondence of a person. The provision prohibits the communication of the contents of confidential letters. What exactly is meant by a confidential letter is not clear. One can consider it in a narrow sense as, referring only to letters marked confidential or take it in its wider sense to mean any closed letter, as opposed to a letter which goes through the post in an unsealed envelope. On the basis of the general principle that all correspondences ought to be protected from indiscretion, the

latter meaning seems to be preferable. It must be underscored that some communication of the contents of correspondence is necessary, and that the mere fact of being acquainted with the contents of another person's mail is not prevented under the Civil Code. It is not the content of the correspondence of another person which is protected but its communication or disclosure without the priori permission of the author.

This is, however, one limitation to this right. As per Article 31(2), the addressee can produce the letter in judicial proceedings if such action is justified by a legitimate interest.

C. Rights Concerning Privacy

Rights concerning the freedom of action of physical persons are contained in articles 16,11,12,14,15,17,23, and 24. These provisions define the general rights of the individual to act as he wishes provided that he respects the law and the rights of other individuals. Here we find the basic concept that liberty is only allowed in so far as it does not prejudice other members of the society.

Article 16 of the Civil Code lays down the general principle concerning privacy. It is drafted in general terms and provides the right of the individual to exercise any activity whether it is professional or in leisure time. Sub-article 1 of Article 16 contains no limitation to the right as it stands now. The subsequent sub articles, however, provide two limitations to the freedom of action of the individual provided under Article 16(1). Art.16 (1) protects society against possible abuse by the individual. This provision protects the society in the sense that the individual can only exercise his freedom of action with in the limits which are provided in the Code. These are respect for the right of others, morality and the law. This reduces considerably the huge field apparently given to an individual's freedom of action in Article 16(1). It places freedom of action within social life

and gives precedence to public interest than to freedom of action.

Article 16(3) is provided to protect the individual against himself, as it prevents him from being bound by any agreement to do or not to do a certain thing. There is a huge exception to this rule. One may validly enter into agreements to do or not to do something if it can be justified by an interest which is recognized by the law. It is widely practiced for instance that, through contracts, individuals bind themselves every day to do or not to do a certain thing. These contracts are valid because their existence is admitted by the law (contract law). If it were not so, the undertakings of the parties to the contract would be without any validity.

Article 11 is concerned with the negative side of the freedom of activity. It deals with the possible restrictions to freedom. Under this article no person may agree to restrict his freedom except in the cases provided by law. There are cases where the law provides a restriction to the freedom. To mention one example, it is clear that the guardian of a child has the power to restrict his freedom of action by forbidding him to leave the house at specific times or by preventing him to go to certain places. This would be contrary to Article 11 of the Civil Code if the guardian were not given power by the law to restrict the freedom of the minor.

Article 12 of the Civil Code deals with a particular case of freedom of action. It is about the freedom to establish one's residence wherever one wishes to do so and to change his place of residence whenever he wants. Article 12 distinguishes between cases where a person undertakes to reside in a particular place and cases where a person undertakes not to reside in a particular place.

The agreement where by a person undertakes to reside in a particular place is, without any exception, of no effect under the law. It means that if the agreement is referred to the courts for enforcement, they cannot enforce the undertaking to reside in a particular place. This is particularly important in contracts for the

performance of services, especially contracts of employment, which often include such agreements. This can be taken as an exception to the general principle laid down in Art. 9(2), according to which a voluntary limitation to one's individual rights can be admitted, if justified by a lawful interest. In the case of the agreement to reside in a particular place, not even the lawful interest of the person considered is admitted to justify the limitation to his right to freedom of residence.

On the other hand, the undertaking of a person not to reside in a particular place can be considered as valid, if it can be justified by a legitimate interest. Again one will have to refer to the law in order to decide whether or not the interest of the person involved in the agreement is protected by law or not. It must be noted that it is the undertaking not to reside in a place which is considered by Article 12, and not the undertaking not to exercise an activity.

Art. 14 deals with two further points in connection with freedom of action: freedom of thought and the freedom to express such thought. The reference to freedom of thought in the Code has not real significance. It is obvious that the freedom of thought alone does not need to be protected, unless the result of such thinking is expressed in one way or another. Like any other freedoms or rights the freedom of thought and expression is limited by the law, the rights of other people and good moral.

The freedom of exercising religious activities of all creeds is considered in Article 15 of the Code. It is the exercise of religious activities which is guaranteed by the provision and not the fact of having adopted any religion or creed, and this is appropriate as the latter is no more controllable than thought, unless it is expressed through the rites of some religion or creed.

The freedom of physical persons with respect to marriage and divorce is considered in Article 17 which declares all promises by an individual not to marry

or not to remarry and to divorce or not to divorce. An exception worth noticing here in, this respect, is that the promise to marry or remarry is allowed under the family Codes. Such agreements are in fact contracts of betrothal as recognized and regulated in some regional family Codes including the Amahra Regional State Family Code.

Finally, there are some individual rights which do not fall in to a single category as they clearly belong to more than one of them. This is the case with Art. 23 and 24 of the Civil Code, which protect the right to silence and professional secrecy. Here one sees the body of the individual protected from physical harm (thus there is connection with protection of the human body) incases where he might by forced to disclose something which has come to his knowledge. This means protection of his freedom of activity, i.e. he cannot be forced to do something he does not wish to do, and it also protects his right to privacy since he cannot be forced to divulge private information.

Generally, Articles 23 and 24 of the Civil Code are concerned with possible violations of the physical or moral integrity leading to admissions or manifestations of the will which do not in fact, represent a person's own will, and are only made because of the pressure exerted upon him. The principle is laid down in Article 23, which speaks of molestation of the personality as a means of pressure. This is not restricted to physical molestation in the English version of the Code and it can then be admitted that moral molestation (such as blackmail) is included in the terms of Article 23. But, the Amharic version by referring explicitly to the infliction of injury to the body limits itself to physical harm and thus excludes moral pressure. This is erroneous as in the modern world non-physical pressure on individual is more likely to occur in the field of private relations that physical pressure and the idea of moral coercion must be read in to Article 23.

If an admission or a declaration of the will is obtained through such means, the

result is the lack of effect of either the admission or the declaration.

A particular case of such pressure exerted upon individuals in order to obtain information is that dealt with in Article 24. It refers to persons whose profession depends to a great extent on the confidence of other people. Among these we can mention for instance priests (who here confessions), doctors (bound by medical secrecy) or journalists (whose profession consists essentially in seeking out information from as many sources as possible). if such persons happen to learn something in the exercise of their professional activity the revelation of which would amount to betrayal or a risk of betrayal of the confidence people put in them because of their professional status, they cannot be compelled to reveal what they have learned. A right is granted to a person to stop the divulgence of facts which he has confided to another whose discretion he has trusted.

The only exceptions to this general rule are the cases of Articles 254 and 335 of the FDRE Criminal Code. Article 254 deals with the duty to inform the authorities of the preparation of any offence against the Ethiopian state and constitutional order. Article 335 deals with cases of plans to commit or the commission of mutiny or desertion. In both provisions there is a legal duty to report any information of such crimes to the authorities. In both cases, it is expressly provided in the Criminal Code that neither official nor professional secrecy shall be admitted as a defense to a charge under these provisions.

Review Questions

1. Explain the characteristics of the rights of personality.

2. Ato Birhanu made an agreement to donate one of his kidneys to Ato Tadesse. Ato Tadesse is suffering from a serious kidney disease and if he doesn't get a transplant he will die. As part of the agreement Ato Tadesse Offered Ato Birhanu a job at his house as a guard.

Now Ato Birhanu is unwilling to undergo the operation for the removal of his kidney. Further more he says his religion does not permit such conditions. Because of Ato Berhanu's refusal to donate the kidney, Ato Tadesse has dismissed him from his job as a guard.

Ato Birhanu comes to you to know if he can get his job back under the agreement. Advise him

3. Ato Yohannes is accused by Zenebech of being the father of her illegitimate child. Ato Yohanes denies the accusation. Zenebech has now brought a paternity action against Ato Yohanes. The court has requested that both parties and the child be given blood tests. Zenebech has agreed to blood tests for herself and her child. However, Yohanes has refused to undergo such a blood test. Advise him the consequence of his refusal to undergo the test.
4. A tetanus epidemic broke out in Bahir Dar in 1997. Vaccination was compulsory for all persons and accordingly instructions were given in all factories to employees that they could be free from work for one afternoon in order to obtain a vaccination. W/ro Abebech worked at the Bahir Dar Textile Factory. Her colleagues all went to be vaccinated but w/ro Abebech refused to go since her religion does not permit such medical treatment. Some days later she became sick with tetanus and was absent from work for two months. When she returned she found that her job had been given to another person. Her boss told her that her absence from work for two months had cost her job. When Abebech said that she had had a tetanus the boss replied that "That is because your own fault."

☞ Can her claim to be reinstated to her job would be successful? Why?

5. Ato Gebeyehu and Asrat are lawyers in Bahir Dar. They have been established there for 20 years and have the biggest legal practice. Recently they have been so busy that they have decided to take on a junior associate to help them. However they are worried that the associate may soon leave them taking their best clients with him. So, they have inserted a clause in the contract of employment which reads as follows:-

“The Junior associate agrees that should he leave the employment of Gebeyehu and Asrat, he will not set up legal practice in Bahir Dar.”

☞ Do you think that the restriction in the contract of employment will prevent the junior associate from setting up his own firm in Bahir Dar at a later date? Why?

Chapter Four

Name

Objectives: after completing the study of this chapter the distance student will be able:

- Know the importance of name for physical persons
- Know types of names of physical persons
- Know the method of attribution of names
- Know how names are changed
- Understand the protection accorded to names

4.1. Introduction:

A name is a technical device enabling the identification of a physical person. Every physical person is identified legally by his names. It is also one of the essential attributes of personality, and as such the law maker has felt that it has to be protected by law.

The Ethiopian Civil Code establishes the principle that every physical person has a family name, one or more first names, and a patronymic mentioned in that order in all administrative document relating to a person (Art. 32). But these names are applicable for persons born after the coming of the Civil Code. Persons born before that time are not obliged to comply with the Code provisions. They are, however, free to do so (see Articles 3358 and 3359 of the Civil Code). This being, however, it should be noted that the organization of names is in a transitory stage particularly because the institution (the Office of Civil Status) and the provisions governing it which are necessary to enforce the provisions on name are not in force.

4.2. Attribution of Names

4.2.1. Attribution of Family Names

The family name is the one which is always mentioned first on all official documents concerning a person (Art. 32). The family name is attached to family of descendants and will serve to characterize all members of that group of descendants.

The main function of the family name is to unite the family group **under** one common designation. It is the visible legal bond uniting all the member of the lineage. If someone switches from one lineage to another as in the case of marriage or adoption, he is either encouraged or compelled to adopt the name of his new group. It must also be noted that changing one's family name while one remains a member of a group is not left to the free decision of the individual. It is submitted to the control of the courts.

It must be noted here that whenever the word "name" is used in the Code without specification it means family name. This clearly results from Articles 33, 39, 40, 41 and 42, where the word name is clearly used alone and clearly refers to family name, while names other than the latter are always qualified as first names or patronymic.

The attribution of family names depends on the date of birth of the individual, i.e. whether he/she is born before or after the coming into force of the Civil Code.

A – People Born after the coming into force of the Code.

Every Ethiopian born after the coming into force of the Civil Code must have a family name (Art. 3359). That name shall be determined or given in the following

manner.

1. If the mother's husband is known, if he has not disowned the child and if he has a family name, the family name of the child is the family name of the father (Art. 33).
2. If the mother's husband is known and if he has not disowned the child but he has no family name, the family name of the child shall be his patronymic, i.e. according to Article 36(1) the usual first name of his father (Art. 3359(2)).
3. If the father is not known or if he has disowned the child, the family name of the child will be the family name of the mother, if she has one, and if she has none, her patronymic, i.e. her father's usual first name (Art. 33(2) and 3359(3)). Article 33(3) states that these rules are also applicable in cases where the paternity of the child has been judicially declared. This means that the child will keep the name acquired from his mother at birth and will not automatically replace it with one from his father if the latter happen to be judicially declared under the rules of the family law all ascertainment of paternity.
4. If the father and the mother are not known, it is provided under Art. 39 that the Officer the Civil Status will give a family name by selecting from names which are common in the locality.

B. Peoples Born before the Coming in to force of the Civil Code.

If someone is born before the coming into effect of the Civil Code, he is free to assume or not to assume a family name under Art.3358(1)). If he decides to have a family name, the attribution of the family name shall be made in the following manner.

1. If the mother's husband is known, if he has not disowned the child and if there are two or more male ascendant generations of his family alive one the coming into force of the Civil Code, he will take as a family name the

patronymic (the usual first name of the father) of the senior male ascendant alive on that date (Art. 3358).

2. If the mother's husband is known, if he has not disowned the child but if there is no generation of his family or if there is only one alive on coming into force of the Code, he will take as a family name his patronymic, i.e., the usual first name of his father (Art. 3358(2)). In this last case, the individual will have a family name which will coincide with his patronymic and Article 36(3) will be applicable to this situation (Omission of patronymic in administrative documents).
3. If his father is not known or if he has been disowned by him, he will take as a family name the patronymic of his mother (Art. 3358(3)). Thus there is no necessity to take into account in this case the possible existence of many generations within the mother's family at the moment of the coming into effect of the Code.
4. In the case where the mother and the father are unknown, the Code is silent. It seems to be possible, by analogy with Art. 39(1) and 59(2), for someone to ask the Officer of Civil Status to give a family name.

4.2.2 Attribution of First Names.

Whereas a person may have only one family name and only one patronymic, he may have one or more first names (Art. 32(1)). This follows the family name and precedes the patronymic, if one adheres to the order set down in Article 32(2). But it must be noted that when Art. 32(1) refers to "many first names", it means in fact two. This results from Article 34 which entitles the mother to give:

- (a) a second first name when the first has been chosen by the father, and
- (b) Two first names when the first has not been chosen by the father.

The first names of physical persons are attributed:-

1. By the father, when the father is known and exercises his right to choose a

first name. If he does not, the choice will be that of family of the father (Art. 34(1)). For this purpose the family will be represented by the child's nearest ascendant, or in his absence, by the child's nearest collateral relative. If there are many ascendants or collateral relatives of the same degree, the eldest among them is entitled to choose the first name (Art. 35). If the father or parents of the father are not willing to exercise this rights under Art. 34(1), it results in the transfer of such right to the mother in accordance with Article 34(2). This is not mentioned in the Code, but seems a reasonable solution for a situation which is unlikely to occur very frequently in practice.

2. By the mother (Art. 34(2) and (3)). According to these provisions, the mother (or here family where she is not exercising her right) must decide the first name in cases where the father is unknown or the child has not family on the paternal side. It must be noted that in such cases the mother (or here family) may give two first names. It would be more correct if it say 'must give a first name and may give a second first name', as the child has, in any case, to have a first name. Thus in cases where the father (or his family) has selected a first name of the child, the mother (or her family) has the right to choose the second first name of the child. In the case where the father (his family) has not decided upon the first name and the mother (or her family) has made the choice, they are still free to give an additional first name to the child. The Code limits the intervention of the mother (her family) to the cases where the father is unknown or the child has no family on the paternal side. By analogy, such intervention can be admitted in the case where the father (or his family) has not exercised his right for any reason.
3. By the Officer of Civil Status in the case where both parents are unknown (Art. 39). In such a case, the child must receive two first names, while in the previous cases the attribution of first name the second family name is optional. The first name given by the Officer of Civil Status shall be choosen among first names which are common in the locality and any

person with any interest to do so may request the court to change these first names before the child reaches the age of five.

4. By agreement of the parties taking part in a contract of adoption (Art. 41).
The Code provides that by a contract of adoption, the adopted child may receive a new first name. Thus the change is optional in the case of the first name, while it is mandatory for the family name. The Code does not refer to the person who is competent to make the attribution, but as it has to be made through the contract, one can coincide that these persons will be the parties to the contract. These are the adopter and the guardian of the adopted child.

Generally, the choice of a first name by all the above mentioned persons is free (excepting the Officer of Civil Status who has to choose among names common in the locality). There is, however, one common exception or limitation. That is no child can be given purely and simply the first name of his father or of his mother or that of one of his brothers and sisters who is alive (Art. 38). The purpose of this provision is to avoid confusion among members of the same family, especially for third parties. The law provides that if a child is given the first name of the above mentioned relatives, then he must also be given at the same time an additional first name which will help to distinguish him from other members of the family who have identical first name. Normally, as you have studied above, the choice of additional first name is optional and left to the mother (or her family). It seems in this case also the choice seems to be that of the mother's, unless the father (or his family) asserts that this is a compulsory provision and not an optional one and that such choice should accordingly be left to him.

4.2.3 Attribution of Patronymic Name

The patronymic is the last name to be mentioned in official documents in Ethiopia. As the term itself indicates, it is one of the father's names and the law

provides that it must be his usual first name (art. 36). This does not seem to imply that it should be the first of its first names. It must only be the usual one. It should be noted that patronymics are always connected with the father. There can not be a patronymic coming from the mother's side. The only exception to this situation is temporary one to be found in the transitory provisions of the Code (Articles 3358(3) and 3359(3), where the patronymic of the father is used for the purpose of attributing a family name. As a result a person will have no patronymic name if his mother is unknown (Art. 36(2)). This seems to show the little regard by law to patronymic names.

The general rule on the patronymic also apply to artificial filiations, as the adopted child may receive as a patronymic the adopter's usual first name (Article 41(2)). This will come about by the agreement of the parties to the contract of adoption, in the same way as for first names. This raises the question of further possible changes in patronymics. The Code does not mention any such possibilities. Since one has only one father, it would seem that there can accordingly be only one patronymic. But this is not always true. There may be cases where the identity of the father may change. This would be the case for instance where there were conflicts of paternity. If the child is subsequently attributes to a new father, it would seem normal to allows him to take a new and correct patronymic. As this is allowed in case of adoption, there is no reason that prohibits us to say by analogy that it is possible in this case also. The law does not expressly allow it nor does it expressly prohibit it.

In cases where the patronymic is the same as the family name, it is omitted in all acts of Civil status. This will be case for instance where, under the transitory provisions on attribution of family names, persons assume as a family name their patronymic (Articles 3358(2) and 3359(2)). This is just a clerical device to avoid repetition.

4.3 The Protection Names

As stated earlier, a name is not only a technical device enabling the identification of a physical person. It is also considered as one of the essential attributes of personality, and as such they are protected by the law. On the one hand the individual is protected against himself, when the law forbids him to dispose of his name and on the other hand the individual is protected against other persons who may either abuse their own name or usurp his. In the following paragraph you will study these protections in detail. It should, however, be noted that surprisingly these protections, as indicated in the Code, apply only to family name and our discussion is only by reference to family names. Since the requirement of family name is not in force, we may say that these protections apply to given names (first names).

A. Names are Extra Commercium

The first protection extended by law to names prohibits making them the object of commercial transactions. Names are, thus, declared extra commercium. No contract having name as an object can be considered as valid under Ethiopian law (Article 44). Thus one is not free to give, sell, hire or lend one's name. The only exceptions to that rule are trade names which are governed by special provisions of the Commercial Code.

B. Usurpation of Name

The term usurpation is derived from the word "Usurp" which means to take away something belonging to someone for on self illegally or without having the right to do so. As used in our context, usurpation means an unlawful use of another's name.

Under Article 46, the Code establishes the conditions under which one cannot use another person's name. From this provision we can understand that the use of another's name is not altogether prohibited by the Code. The use of someone else's name is prohibited under Article 46 only under the following conditions.

1st – There must be usurpation; that is the use of another's name which is not justified by some right.

2nd – The usurpation must cause or be likely to cause material or moral damage. Thus, the damage need not be immediate. There need only be a likelihood that it will result from the usurpation. As to the damage, it could be moral or material. The protection granted is thus extensive and this is justified by the desire to sanction all actions tending to hurt another person through the use of his name.

The right of the victim in this case is that of resisting the usurpation. Article 46 states that one can resist the usurpation and that compensation can be claimed in cases where the requests for cessation of the usurpation have not been observed by the perpetrator. On the basis of this, it can be argued that it is sufficient for the aggrieved party to require from the usurping party the cessation of the usurpation. The sanction for non-compliance with such a request is damages. This can only be granted by a court. In order to do that the court has to see:-

- The existence of usurpation
- The existence or possibility of damage and
- The existence of a valid objection by the holder of the name which has been ignored by the defendant.

The right to require the cessation of the usurpation or damages is not vested solely in the bearer of the name. In cases where he is dead or unable to manifest his will, the same right to resist the usurpation will be rest in each of his

descendants and in his spouse, whether or not they bear the name themselves.

C. Abuse of Name

In the same way that one is not permitted to usurp another's name, one is not also allowed to abuse his own name and cause damage to others (Art. 45). In other words one is not free in the use of his name. Individuals are prohibited from abusing their name and cause damage to others under the following cumulative conditions:

1. If the abuse of one's name has to take place in the course of professional activities. Out of the field of any professional activity, there is no question of abusing one's name. The abuse of one's name is prohibited only in the field of professional activity. As to the meaning of the term professional activity, it seems to refer to any activity which is regularly performed with the purpose of financial gain for one's living. Thus, there are two elements to be considered. It must be performed regularly (not occasionally) and it must be for gain.
2. If the abuse is done with an intention to inflict some damage on the credit or reputation of a person. The damage can be potential or actual. In the first case the intention is considered whatever the result may be, while in the second the result is considered whatever the intention may have been. Accordingly, third parties are fully protected from damage to their credit that might come from some one's abuse of his name.
3. The prejudice suffered by the credit or reputation must have resulted in confusion. It means that there must be a similarity sufficient to create confusion between one's name and the name of the person injured in his credit or reputation.

Article 45(2) provides for remedies in case of abuse. The remedy for abuse of name is provided by way of reference to the provisions of the Civil Code relating

to unfair competition or to defamation, according to the circumstances of the case. The provisions on unfair competition (Art. 2057) and defamation (Arts. 2044 – 2049) are applicable for remedies to be sought by the victim. If the abuse of name is only likely to cause damage, the remedy lies in Article 2122 on unfair competition. It gives to the judge power to order the one who abuses to stop his activities. If the abuse has already resulted in damage, then Article 2109 on defamation is applicable in which case an equitable amount of compensation would be awarded.

4.4 Change of Names

Once people have name, they must keep it for the sake of stability in social relations. If there is a good reason, however, application for a change of name can be made to the courts. Courts will generally accept such cases if the name is bringing serious inconvenience to the one who bears it. Rules are not as such strict for the change of family names and first name except that it has to be made through the court with justification. As for the patronymic, it cannot be changed. This results from its nature, although one could wonder whether it should not be changed if the usual first name of the father is changed or the identity of the father changes for some reason. In the following paragraph, you will study the rules governing the change of family names and first name.

In general, once a family name has been assumed, it can not be changed. There are, however, various cases in which a change is possible. These are:-

1. When a woman marries, she normally keeps her own family name. But the Code makes it possible for her to designate herself or to be designated by her husband's name for the duration of her marriage. Her right to do so remains after marriage even when the latter is dissolved as a result of death, provided that she remains unmarried. If the marriage is dissolved by divorce or if the woman remarries,

then she takes back her maiden name as indicated in Article 40.

2. When a child is adopted, his family name is replaced by the family name of the adopter, since he relinquishes all bonds with his original family (Art. 41).
3. When both parents of a child are unknown and he receives his family name from the officer of Civil Status, any person showing he has a moral or material interest in the matter, may ask the court to change that name. This, however, must be done before he reaches the age of five (Art. 39(3)).
4. When a person applies to the court for permission to modify family name, the court may find that the person concerned has a good cause for so doing. The court must also ensure that the interest of third parties will not be prejudiced by the change of name (Art. 42). The decision as to what constitutes a good cause is a matter to be decided by the court. Among such good causes one can mention cases where the name has obviously bad connotation in common parlance, or where a child happening to know the identity of his father, wishes to abandon his mother's name and take his father's.

As to first name, once it has been attributed it can not be changed freely by the person who bears it. As in the case of family names, one has to request permission for the change from the court (Art. 43). But in the case of family names, the law requires good reason for change, while in the case of first name the law requires none. This difference shows the primary importance attached to family names by the legislator. According to Article 43 one is entitled to request from the court that one or more of his first names be struck out, but that only one added. Thus, if someone has only one or two first names(s), he can request that one or both be struck out, but must also request the addition of one so that he keeps a first name. The application of Art. 43 do not lead to the disappearance of all first names, as every individual must have at least one first name.

REVIEW QUESTIONS

1. What is the importance of name?
2. Do you think that it is possible to change the patronymic name?
3. Ato Birhane Haile and W/ro Almaze Belay have a son born to them in 1975. They decide to call him Kebede. What will his full name be? When Kebede marries, he may give the name Solomon to his son. What will Solomon's full name be under the Civil Code?
4. W/t Alem gave birth to a baby in 1970. She refused to tell her family who the father of the baby is. She herself is illegitimate and has no patronymic. She decided to call the baby Tesfaye. What will Tesfay's full name be under the Civil Code?
5. Ato Hailu Belew is a famous Ethiopian Athlete. He has won many medals in many competitions and two years ago, at the age of 40, he decided to retire. This decision was announced in the news papers and was accompanied by a photograph of Ato Hailu. One day, Ato Hilu received a telephone call from a sports wear manufacture suggesting a meeting for business conversation. According to Ato Hailu the conversation was as follows.

Sports wear manufacturer: Said that: "You may have heard that I have just started a sport clothes factory with retails out let in various parts of the country. I would like you to came in to the business as an advisor and lend your name to the enterprise your name to the enterprise. Your salary will be 1000 birr per month. Of course you must not lend your name to any other business. Ato Hailu agreed and the business, both factory and three shops

became known as the “Hailu Belew Athletic Sports Goods.”

For some months the business went well. Sweat shirts stamped with a picture of Ato Hailu and bearing the legend “Hailu Belew Athletic sports Goods” were sold all over the country. However, the other sports goods have not sold at all. The sports wear manufacturer informed Ato Hailu six months ago that he will have to take a salary cut of 500 birr and that from henceforth the business will be limited to the production of sweat shirts.

Ato Hailu is very unhappy about the cut in his salary. Also he has been approached by another shoe manufacturer, to lend his name to the shoe factory. It has offered a salary of 1500 birr a month, on condition that Ato Hailu removes his name from the sports business.

- Can Ato Hailu prevent the sports wear manufacturer from using his name and portrait for business purpose?
- What possible arguments can the sports wear manufacturer can raise against Ato Hailu if Ato Hailu enters into agreement with the shoe manufacturer?

Chapter Five

Residence, Domicile and Nationality

Objective: After completing the study of this chapter the distance student will be able to:

- Understand the concept of residence, domicile and nationality.
- Known the importance of residence, domicile and nationality.
- Known how the residence and domicile of a person is determined.
- Know how Ethiopian nationality is acquired and lost.

5.1. Introduction

Residence, domicile and nationality are meanses of individualizing physical persons. But in this case, unlike in the case of name, the individualization does not refer to the individual per se, but to his location in society. These are meanses of localizing individuals, who are in most cases mobile, for proposes of legal transactions.

The residence, domicile or nationality of a person is the place where he can always be found or belong in a legally valid way (although he may not be physically present) for all legal purposes.

Dear distance student, residence, domicile or nationality of a person has different legal purposes in the whole life of the individual and now you shall study them in detail.

5.2. Residence

The function of residence is not indicated in the section of the Code that deals with residence (Articles 174 – 182 of the Civil Code). It is to be found only in other parts of the law such as in the law of Civil procedure (for the purpose of serving summon), in the family law (for the purpose of celebrating civil marriage), in areas of contract law (for the purpose of performance), in the law of succession (for the purpose of opening the succession) etc. The section of the Code on residence has no other purpose than to establish bases valid for the whole body of the Ethiopian law by defining where the residence of a person is in order to localize the individual some where within the society for the purpose of legal relations or transactions.

The definition of residence in the Ethiopian legal system results from the combined reading of Articles 174 and 175 of the Civil Code. According to these two provisions the residence of a person is:-

- The Place where he normally resides. Here *normally* means regularly, not occasional, although it does not necessarily be undisrupted. So, as indicated under Article 175(1), the mere fact that a person is for a time in a certain place will not be sufficient to constitute for him a residence in such place.

- The place where a person has stayed or has the intention of staying for more than three months (Art. 175(2)). Although the Code is not clear, it seems that the period of three months must be uninterrupted. Thus one may conclude that in all cases a residence exists in any place where somebody intends to reside or resides in for more than three months. This does not, however, preclude the existence of a residence in a place where a person stays for less than three months provided that he comes normally to this place and not just occasionally (As per Art. 174).

The result of the application of the above rules is that an individual may have many residences, provided that these are places where he resides normally, or for more than three month. This possibility is acknowledged by article 177 of the Code which specifies that a person may have many residences and that, if such is the case, one of them may have the character of principal residence, while the others are considered as secondary one. The existence of principal residence is optional and not mandatory as the word “may” indicates. One will have to refer to one of the residences as being the principal one where the law, for one purpose or another, requires consideration of the principal residence (e.g Article 826 on opening of succession). The question is how to decide or determine on what basis a residence becomes principal residence while others remain secondary. As the factors of normality and of time spent in a place are important in order to define residence, one might say that the principal residence is the place in which someone stays more normally or more frequently or for the longest period.

Article 181 provides that one is free to decide that one’s residence will be a given place for the purpose of one’s relation with a specific person or for a specific business activity, apart from the residences determined according to the above rules. This is called a stipulated residence. The effects of stipulated residence are that the party for whose benefit a residence has been stipulated can consider as a valid residence of the stipulating party either his real residence (determined

according to the Code) or the stipulated residence. He has a free option. But it is also possible to limit the choice of the other party to the stipulated residence only. This can be the case only if the two parties have expressly agreed to make the stipulated residence the only residence for any thing connected with the transaction. If there is no such express agreement, then the option remains.

The Code also provides for some specific cases where residence of a person is determined by the law. Thus it is provided that:

- a. The residence of traders shall be deemed to exist in the place where they carryout their trade (Art. 180).
- b. The residence of public officials shall be deemed to exist in the place where they exercise their functions or duties (Art. 179).

In these two cases of legally determined residences the individual disappears behind his social functions. In fact nothing prevents him/her from having many residences as per the rules discussed earlier (Articles 174 and 175).

Apart from these two categories of people whose residence is fixed by the law, one is free to establish one's residence where one wishes. This is applicable even for persons who are dependant on others, namely married women, minors and interdicted persons. The Code expressly states that they are free to have a residence of their own (Art. 178). The general right of all physical persons to establish freely a residence at the place of their choice is one of the fundamental civil rights that is recognized under Article 12 of the Civil Code. Article 178 is included only to avoid possible confusion where married women and minors are considered. As far as minors are concerned, one should also consider the relevance of Article 256 of the Revised Family Code which gives to the guardian the exclusive right to determine the residence of the minor. Thus the minor may have a different residence than his guardian, but the place of this residence shall be determined by the guardian.

The law has a firm stand that every one must have a residence. One is not free not to have a residence. In the case of someone moving so frequently that he can never be said to reside anywhere according to the previous articles, the law considers that the place where he is, is his residence. The only way to escape such a presumption is to prove that one's residence is effectively elsewhere. If this is done, one is bound by such proof, and the purpose of the law (that everyone must have a residence) is fulfilled.

5.3. Domicile

As defined under Article 183 of the Civil Code the domicile of a person is the place where that person has established the principal seat of his business and of this interests with the intention of living their permanently.

Thus there are two factors that have to be considered in order to define domicile.

1st – The establishment of principal seat of business and interest. The domicile of a person can only be the place where he has established the principal seat of his business and interest. This element of the definition concerns the effective activity of the individual. The word business refers to the economic aspect of his activities and the word interests to his social life. In most cases the centre of business and social life of individuals are located in the same place and no problem exist in such cases. But there are also many cases in modern life where the centre of business, social and family life is situated in different places. In

such cases what should be the test?

Article 185 solves this problem by deciding in favour of social and family life as the determining factors in so far as domicile is concerned. There still exists another factor here. The seat of business and interest (the seat of interest if the centre of business and the centre of interest are different) must be the principal one, not any of the various centers of the business and interest that the individual may have.

2nd – intention to live permanently. Again the domicile of a person can only be the place where he has the intention of living permanently. The word “permanently” is to mean for an indefinite period of time. In the case of *shatto v. shatto*, the Supreme Imperial Court of Ethiopia construed Articles 183 and 184 of the Code and concluded that permanent meant for an indefinite period of time. (Read another case attached at the end of this module).

But the problem is how do we know whether a person intend or not to reside permanently in a particular place? This is difficult to ascertain as intentions are psychological in nature and can only be fully known only by the interested person. Article 184, provides a solution for this problem by laying a presumption which states that where a person has a principal residence, he is supposed to have an intention of residing there permanently.

This presumption is in fact rebuttable. But the mere declaration by the interested person that the said individual has no intention to reside permanently is not sufficient.

As in the case of residence, the law does not allow a person to be without a domicile. If the domicile of a person is unknown or can not be determined according to the above rules, the Code under Article 188 provides that the

principal residence of the individual will be taken as this domicile. In the absence of principal residence the first established secondary residence is taken as the domicile of the individual. You have studied above that a person has always at least one residence in the place where he is in the ultimate analysis and that place will also be that of his domicile.

Apart from the domicile established in accordance with the above principles the law settles a few special cases. Thus:-

1. The domicile of a married woman is that of her husband as long as the marriage lasts (article 189).
2. The domicile of an unemancipated minor is that of his guardian (Article 190);
3. The domicile of an interdicted person is where he was domiciled at the time of the interdiction (article. 191).

Once a person has a domicile in a given place, he shall keep it, as long as he does not establish it in another place. Thus once someone has a domicile, everyone can consider it as valid. In case of conflict, it will be for the person whose domicile is contested to prove that he has effectively established his domicile in another place.

Under Article 189(2), the married woman is able to change her domicile and acquire one of her own when her husband is affected by a judicial or legal interdiction.

Domicile differs from residence in two respects first, domicile is a unitary concept. A person may have several residences, but only one domicile under the law of particular country (see Art. 186). Second, domicile denotes an element of permanency. It is the place where a person resides and has established his interests with the intention of living there permanently.

The legal effect or importance of domicile is not indicated in the Code or any other part of the law. The only concept important for the application of the law and which is referred to in many areas of the law is residence. The importance of domicile is only for the purpose of private international law and one cannot see why it is included in the Civil Code. Perhaps it may have been included to facilitate the implementation of the Private International Law rules which were included in the draft Civil Code, but left out at the time of promulgation.

5.4. Nationality

Nationality is the status of being a subject to a given state. It is the quality or character which arises from the fact of a person's belonging to a state. It is explained in terms of the status that an individual has vis-à-vis a given state.

The concept of nationality is important both for domestic (municipal) law and international law. Under domestic law nationality provides a normal basis for the exercise of civil and criminal jurisdiction even in respect of acts committed abroad. It is also a basis for the exercise of democratic and political rights. Under public international law nationality is a prerequisite for the purpose of diplomatic protection, extradition and expulsion.

Although nationality is an important concept both for international law and municipal law, it is the power of each individual sovereign state to determine matters of nationality through their own domestic laws. A state can legislate on how one becomes its national, how one loses its nationality, how one can be readmitted to its nationality, etc.

5.4.1. Acquisition of Ethiopian nationality

Generally, there are two basic approaches to determination of nationality. These

are the rules of:-

- *jus sanguinis* (nationality by blood)
- *jus soli* (nationality by birth)

Under the principle of *jus sanguinis*, a child takes the nationality of his parents (where the parents are of different nationality, it is usually the nationality of the father) irrespective of where the child was born. For example, Germany has adopted *jus sanguinis* as the decisive factor; children born of German whether born in Germany or abroad acquire German nationality while children of foreigners born in Germany are not German nationals but take the nationality of their parents.

Under the principle of *jus soli*, children born in a country, whether the parents are nationals or foreigners, become national of that country. Conversely, children born to its nationals residing abroad are not nationals. Argentina is taken as an example where the territory on which the birth occurs is the exclusive determining factor for determining nationality.

Many nations also recognize elements of both principles in their nationality law, with one or the other usually predominating. For instance the United States of America is primarily a *jus soli* nation. The Fourteenth Amendment of the US constitution provides that all persons born in the United States are nationals of the United States. At the same time the US law allows nationality to children even born abroad provided that one of his/her parents had a residence in the United States or its possession prior to the birth of the child.

Since some states use *jus soli*, and others *jus sanguinis* and many states a combination of both, frequently individuals are born with dual or multiple nationality (being national of two or more states). For example, a child born in the United States from German immigrants who had never renounced German nationality would be considered an American by the United States nationality law

and the same child would be considered German by the Germany nationality law. Dual nationality may arise also if a woman takes her husband's nationality upon marriage under his nationality law, but does not lose nationality under her nationality law. Some states provide that a national loses his nationality by accepting foreign nationality. Others permit their nationals to take on foreign nationality without losing their original nationality. In this last case also dual nationality arises.

Another problem that arises in connection with nationality is statelessness. This results when a person loses the nationality of one state without acquiring nationality in another. For example, under the laws of some states a woman loses nationality by marrying a foreigner. If her husband's nationality law does not give her his nationality, she is stateless. In certain circumstances a person may be deprived of his nationality by his national law without acquiring another nationality.

Most people acquire their nationality at the time of birth. Whether a newly born child is national of this or that state is determined, as discussed above, based on the principles of *jus sanguinis* or *jus soli*. It should, however, also be noted that nationality can be acquired after birth through different means. Nationality can be acquired after birth:-

- by naturalization:- assimilation of aliens to nationals after they fulfilled certain conditions and requirement as provided by the law of the state to which application is made.
- Reintegration or readmission:- an individual who has lost his original nationality may recover the original nationality upon fulfillment of certain condition.
- Annexation and cession: – nationality is acquired by annexation or cession by peoples inhabiting a ceded or annexed territory.

Concerning the acquisition of Ethiopian nationality the relevant laws are Article 6

of the FDRE Constitution and the Ethiopian Nationality Proclamation no. 378/2003 which is issued pursuant to Article 6(3) of the FDRE Constitution and repealed the 1931 Ethiopian nationality law.

According to these laws Ethiopian nationality can be acquired either:-

- by Descent:- being born from Ethiopian parents, or
- by law (naturalization):- acquisition of Ethiopian nationality by foreigners by law.

1. Acquisition by Descent

Article 6(1) of the FDRE Constitution provides that any person of either sex shall be an Ethiopian national where both or either parents are Ethiopian. The same rule is reproduced under Article 3(1) of the Ethiopian nationality proclamation no. 378/2003 with slightly different wording. Thus the simple fact of birth from parents both or one of whom are Ethiopian nationals confers upon the child the Ethiopian nationality. By making descent from nationals a determinant factor for acquisition of Ethiopian nationality, the Ethiopian nationality law incorporates the principle of *jus sanguinis*. This rule is also extended to an infant who is found abandoned in Ethiopia. Such a child shall acquire Ethiopian nationality by presuming that he is born from Ethiopian parent unless proved to have foreign nationality (Art. 3(2)). The extension of nationality to the foundling protects the child from becoming stateless. If it is proved that the child has a foreign nationality he shall not become Ethiopian national.

2. Acquisition of Ethiopian Nationality by Law.

It is a foreign person who is not an Ethiopian national by descent (blood) that can acquire Ethiopian nationality by law. Acquisition of Ethiopian nationality by law means that foreigner shall become Ethiopian through naturalization.

Under the nationality proclamation there are five categories of foreigners who can apply for the acquisition of Ethiopian nationality by law.

These are:-

- any foreigner who want to become Ethiopian
- a foreigner who is married to an Ethiopian
- a foreign child adopted by Ethiopian national
- a foreign person who has made an outstanding contribution in the interest of Ethiopia, and
- children of a naturalized person.

The first category of foreigners has to fulfill all the conditions provided by the proclamations under Article 5. But foreigners in the rest four categories are not required to fulfill all the conditions provided by the proclamation for the acquisition of Ethiopian nationality by law. They are required to fulfill only some of the conditions. Therefore, we can say that there are two types of acquisition of Ethiopian nationality by law or through nationalization.

These are:-

- a) Naturalization proper, and
- b) Specially privileged nationalization

As to the specific requirements and the procedure to be followed in the acquisition of Ethiopian nationality by law see the Ethiopian nationality proclamation attached at the end of this module.

5.4.2. Loss of Ethiopian Nationality

An Ethiopian national may lose his Ethiopian nationality by renunciation of

Ethiopian nationality. Renunciation of Ethiopian nationality may be express or implied.

a. Express renunciation:

Any person who is an Ethiopian national can renounce his Ethiopian nationality expressly (Art. 11(3) Nationality Proclamation). However, any person who wants to renounce his Ethiopian nationality has to acquire or has been guaranteed the acquisition of the nationality of another state. Such requirement aims at avoiding the occurrence of statelessness.

The person who intends to renounce his Ethiopian nationality has to inform the Security, Immigration and Refugee Affairs Authority in advance. In case of a minor child the renunciation of Ethiopian nationality shall be effected by the joint decision of his parents or by the decision of the Ethiopian parent where one of the parents is a foreigner (Art. 19).

An Ethiopian national who has the intention of renouncing his Ethiopian nationality and declared his intention to the Authority may not be released of his nationality till he has discharged his outstanding nationality obligation or until he has been acquitted or served the penalty, if he has been accused or convicted for a crime (Art. 19). This is because the right of renunciation of nationality should not be used as a way to evade national obligation or escaping penalty. Upon ascertaining that the person who intends to renounce Ethiopian nationality has discharged his national obligation or has been discharged from criminal proceeding or served his sentence, the Security, Immigration and Refugee Affairs Authority shall issue the applicant with a certificate stating the effective date of his release (Art. 19(2)).

Renunciation of nationality is a right and as such it can be enforced through court

of law. Any Ethiopia, therefore, has a right under the nationality proclamation to appeal to the Federal High Court from the decisions of the Security, Immigration and Refugee Affairs Authority denying him of release from Ethiopian nationality. (See Art. 19(3) for Proc. No. 378/2003 and procl. No. 25/96, Art. 5(5), and 11(2) b)

b. Implied Renunciation

Under the Ethiopian nationality proclamation there are cases where the renunciation by an individual of his Ethiopian nationality is presumed. These presumptions are implied from the following acts of the individual.

- ☞ When an Ethiopian individual acquires another nationality by his voluntary act. An Ethiopian national who voluntarily acquires another nationality is deemed to have renounced his Ethiopian nationality voluntarily (Art. 20(1) Proc. 378/2003). For Example, if an Ethiopian national applies for naturalization in another state and is granted the nationality of that state, such individual is presumed to have renounced his Ethiopian nationality voluntarily. However, such a presumption is without prejudice to the provisions of the proclamation that require an Ethiopian who intends to renounce his Ethiopian nationality to discharge his national obligations and to be acquitted or served a penalty where he is accused or convicted of a crime (Art. 20(1) and 1994)). An Ethiopian who acquires another nationality may not be released until he has discharged his obligations under Article 19(4) (a) and (b) of the Nationality Proclamation.
- ☞ When an Ethiopian acquires another nationality involuntarily. An Ethiopian national may loss his Ethiopian nationality involuntarily, i.e. without his initiation. This may happen at the time of birth or after birth.

A child, who is born of parents, one of them having a foreign nationality while the other is an Ethiopian, may acquire at birth both Ethiopian nationality, because of his Ethiopian parent, and a foreign nationality, because of his foreign parent. Still a child may acquire a foreign nationality even if he is born of parents both of whom are Ethiopian, if he is born in a foreign state that follows the principle of *jus soli* for acquisition of nationality by birth. So, any Ethiopian who has acquired another nationality at birth and not already renounced his Ethiopian nationality voluntarily before attaining majority, shall be deemed to renounce his Ethiopian nationality unless he has declared to the Security, Immigration and Refugee Affairs Authority his option to retain Ethiopian nationality by renouncing the other nationality within one year after attaining the age of majority (Art. 20(2)). It is also possible that the renunciation of the nationality of the child before he attain majority can be made by the joint decision of the parents or where one of his parents is a foreigner by the decision of the Ethiopian parent.

The Child is, however, considered solely Ethiopian national until he loss his Ethiopian nationality by being presumed to renounce his nationality (i.e. until the age of 19) see Art.20 (4). If before completing the 19th year the child did not declare his intention to maintain the Ethiopian nationality, the law presumes that he has renounced his Ethiopian nationality.

An individual, although solely Ethiopian at the time of birth, may thereafter acquire another nationality involuntarily by the operation of the law. For instance an Ethiopian woman who is married to a foreign national can acquire, without her consent, her husband's

nationality because of marriage and in case of cession or annexation of a territory an Ethiopian national living in that territory may be conferred with the nationality of the ceded or annexing state. In such a case an Ethiopian shall be deemed to renounce his Ethiopian nationality, if he fails to declare his option to the Security, Immigration and Refugee Affairs Authority to retain his Ethiopian nationality by renouncing his foreign nationality within a period of one year (Art. 20(3) b). He shall be deemed to renounce his Ethiopian nationality if he starts to exercise the rights conferred to such acquired nationality (Art. 20(3) a). Such individual is considered solely Ethiopian national till he loses his Ethiopian nationality for the purpose of his relation with Ethiopia (Art. 21).

5.4.3. Re-admission to Ethiopian Nationality

Any person who was an Ethiopian national at one time but has lost his/her Ethiopian nationality, either through voluntary renunciation or presumption of renunciation, shall be readmitted to Ethiopian nationality after he has fulfilled certain conditions. These conditions are:

- returning to domicile in Ethiopia,
- renouncing the foreign nationality, and
- applying to the authority for re-admission (Art. 22(1))

The law does not make any distinction between persons who were nationals of Ethiopia by descent and by naturalization. Both can apply for readmission to Ethiopian nationality. The application is, then submitted to the Nationality Affairs Committee within the Security, Immigration and Refugee Affairs Authority for the ascertainment of the requirements mentioned above. The authority may give a readmission based on the recommendation of the committee.

Review Questions

1. Explain the similarities and differences between residence and domicile.
2. Explain the conditions under which Ethiopian nationality is acquired and lost.
3. Ato Ayalew lives in Addis Ababa and owns a house in Debre Zeit. He goes there every year on holiday. This year he dies in his house in Debre Zeit. Where is his residence for the purpose of the opening of his succession?
4. Ato Tamirat is a person who wanders around the country on a bike sleeping where he can. He has no family and never stays in one place more than a few days. He is involved in a traffic accident in Addis Ababa and the Police wants to serve summon. Where should the police give him the summon? Why?
5. Ato Bekele lives in Addis Ababa for 6 months and in Bahir Dar for 6 months. He has stores in both places. His wife, to whom he is married two months before is from Harar. After she has lived in Bahir Dar for two months, Ato Alemu wishes to serve summon on her in connection with a debt she owed in Harrar.
6.

Ato Bekeles's eldest son by his first marriage, Admasu, is 17 years of age and has been in France for six years at school. He wishes to be married and has applied for Ethiopian courts for permission. But the court wants to know where his domicile is.

Answer the following questions:

- a. Where is Ato Beklele's residence? Domicile?
- b. Can Ato Alemu serve a Summon on Ato Bekele's wife in Bahir Dar?

c. Where is Admasu's domicile? Residence?

7. W/ro Lucy who is an Ethiopian was a winner of the diversity Visa lottery and she has now entered in to the United States of America.

Immediately after her arrival she gave birth to a baby boy christened Yoseph.

☞ What is Yoseph's Nationality?

CHAPTER SIX

The Capacity of Physical Persons

Objective:

After studying this chapter the distance student will be able to:-

- ☞ Define the concept of Capacity
- ☞ Know the sources of incapacity
- ☞ Know the organs of protection of incapacitated persons and how they function
- ☞ Know how the incapacity of physical persons terminates.

6.1. Capacity in General

The term capacity in its legal sense refers to the ability of physical persons to exercise their rights and discharge their duties by themselves. The fact that physical persons are holders of rights and duties, since the moments of birth, and exceptionally, at the time conception does not always mean that they will exercise them. Exercising rights and duties requires capacity; the law must have given the holders the power or ability to exercise their rights. Those who are

hindered by law from exercising their rights and duties are said to be under incapacity.

Concerning capacity of physical persons the capital principle as contained under Article 192 of the Civil Code is that capacity is the rule and incapacity the exception. In other words in the same way that all physical persons, as soon as they exist, become holder of all rights and duties, they are capable of exercising them. There must be an explicit declaration before some one can be considered as incapable, that he is unable to exercise or perform acts of civil life. What is more in the field of evidence capacity is presumed (Art. 196), and if someone alleges the existence of incapacity it is incumbent on him to bring satisfactory evidence to that effect. Thus in all acts of daily life, physical persons may assume that they are dealing with equals who not only hold but also exercise the same rights and duties as theirs.

In the same way as a person can not decide to renounce the holding of rights and duties, he can not as well renounce the exercise of them (Art. 195(1) Civil Code). There is one exception to this rule, however. Voluntary renunciation of the exercise of rights and duties is possible where it is justified by the law and public order (Art. 195(2)). Among the cases where the law admits voluntary renunciation of the exercise of one's rights and duties are, for example, the case where one appoints an agent to act in his place and the case where one asks the court to pronounce a judicial interdiction of himself.

Although, as laid down under Art. 192, the general rule is that every physical person is capable, the law for one reason or another, declares some members or groups of society incapable. Once a person has been declared incapable by law, the extent of his incapacity is also defined by the law. In fact incapacities are never absolute. There is always a limited sphere which remains within the powers of the person declared incapable. The individual is left free to perform, without outside interference, some categories of acts of legal life. In respect of

these acts left to the person declared incapable, the incapable person has full capacity and thus exercises his rights and duties in the same way as a normal person. This is justified either by the deeply personal character of some rights (the right to make will) or by the necessities of practical life (as in the case of acts of daily life). Thus, some rights and duties are still exercised by the person whose capacity has been lessened.

Article 193 and 194 of the Civil Code divide incapacities into two main categories:

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1. General incapacities, which depends on age (for minors) or on mental condition (for judicially interdicted persons) or on a penal sentence (for legally interdicted persons).
2. Special incapacities, which depend on nationality (for foreigners) or on functions (the case of persons who are prevented under special laws from exercising rights and duties in connection with special functions which they perform).

It should be noted that these are the only cases where a physical person can be considered as incapable.

6.2. Persons with Incapacity

As mentioned earlier the Ethiopian law recognizes five categories of incapacitated persons. These are minors, judicially interdicted persons, legally interdicted persons, foreigners and persons with special functions.

The law defines, for each category of incapable persons, the manner in which the incapacity is established, the rights and duties that can still be exercised by the incapable person himself, the organs of protection of the incapable and their

respective rights and duties, and finally the manner in which the incapacity ends. You shall now study them in detail.

6.2.1. Minors

The rules concerning minors that were incorporated into the Civil Code are repealed and replaced by the various Family Codes issued by the federal government and regional states. For the purpose of this study we will use the rules contained in the Revised Family Code proclamation no. 213/2003 which is the mother text for all other family Codes issued by the regional states. It should, however, be noted that the Civil Code provisions concerning minority are still applicable in regions which have not yet promulgated their own family laws.

As defined under Article 215 of the Revised Family Code

"A minor is a person of either sex who has not attained the full age of eighteen years".

Any person who has not reached 18 years of age is a minor and as provided under Art. 216(3) of the Revised Family Code he may not perform juridical acts except in the cases where the law allows him to perform. Thus the principle that the minor is powerless is established and it is for the law to exempt him from the incapacity and allow him to perform some juridical acts. Even if minors are generally under incapacity as regards the exercise of their rights and duties or the performance of juridical acts, exceptionally, the law allows them to certain specific types of juridical acts. These are the following:

1. From the age of fourteen onwards, the minor himself receives the income deriving from his work and is free to dispose of such income as he wishes under the sole condition that he contribute to his maintenance (Art. 263). The law does not fix the amount of such contribution. From the wording of the provisions one can point out that it must be a contribution and that, consequently, the whole burden of his maintenance cannot be put on him.

2. At any age the minor can receive the income of any property donated, bequeathed or left to him, provided the person who has left the property to the minor expressly declared to this effect (Art. 264). It should be noted here that the minor cannot freely dispose of such income, unless the person who donates or bequeaths the property expresses his will that the minor receive that income and be able to dispose of it. Thus regard shall be had to the instructions given by that person in the contract of donation or will. If no instructions are given, the guardian will dispose of the income under the general provisions of Art. 261.
3. Under Article 134 of the Revised Family Code the minor is allowed to acknowledge an illegitimate child. Such acknowledgement may also be revoked by the minor during the time of his incapacity or one year after his incapacity has come to an end unless the acknowledgement has been authorized by his guardian (Art. 140(2)).
4. The minor can be authorized by his tutor to conclude those contracts which, considering his age and his financial position, are to be regarded as acts of every day life. Article 292 such authorization may be tacit but cannot, in any case whatsoever, be applicable to contracts which would normally require the authorization of the court (Art. 293) for their conclusion or to contracts which would entail on the minor an expense or obligation the value of which exceeds three hundred Ethiopian birr.
5. Having reached the age of sixteen years, the minor can make his will (Article 295). If he makes a will before he attains 16, it can have no effect, even if it has not been revoked after the minor has reached the age of sixteen.
6. After attaining the age of fourteen, the minor can conclude a contract of employment under Article 48 and 89 of the Labour Proclamation no. 377/2003.

These six cases are those in which the Ethiopian law authorizes minors to perform juridical acts. In the case of an act being performed which is not within

these precise limits the sanction would be that such act would be of no effect (Art. 299). The nullity of the act performed by the minor in excess of these limits has to be invoked by someone and the law, in Article 300, explicitly enumerates those persons who are entitled to invoke the invalidity of the act. These are the minor himself, his heirs or his representatives (guardian and tutor) only. The nullity can always be invoked even if the minor has declared to the contracting party that he has reached his majority. This does not even entail the extra-contractual liability of the minor for the fault he committed by declaring false statements (Art. 304).

An exception to this rule of the nullity of any act performed by a minor when he has not the power to perform it, is the case where the contracting party can establish his good faith under Article 301. There are two conditions for the application of that article.

- ☞ The contracting party must in good faith believe that the minor has authorization to enter into the contract.
- ☞ The contracting party must not have taken advantage of the minor's inexperience.

Provided these two conditions exist, the contract entered into by the minor is valid. It shall take full effect with no possibility for the minor or any one else to invoke its nullity.

Another special case is considered under Article 302. Where payments have been made to the minor in performance of a contract the minor shall return it to the extent of the enrichment derived by the minor on the day when the action of nullity is required.

Under Article 303, the minor is submitted to the general rules of extra-contractual liability and unjust enrichment (as stated in Articles 2027 to 2178) in cases where the conditions laid down in these provisions apply to the situation resulting from

his action. For instance the provisions of the extra-contractual liability law will not apply to the cases considered under Article 304.

6.2.2 The Protection accorded to Minors by Law

As mentioned earlier persons below the age of eighteen are under legal incapacity as regards the exercise of their rights and duties or the performance of juridical acts. This is done by the law purposely to protect the minor and not to imply that their personality is incomplete. They are persons in the full sense of the term and are holders of rights and duties from the moments of birth and sometimes from the moment of conception. Because of their age, persons below the age of eighteen are presumed that they do not understand the nature and consequence of their acts. As a result there is the fear that they may engage in acts that are prejudicial to their interest (personal and pecuniary interest). In order to protect minors from this danger and up bring them as a responsible citizen, the law has put them under incapacity and entrusted the exercise of their rights and duties to organs that are established and organized by the law. For their protection and well-being minors are put under the protection of a variety of organs which ranges from the guardian and the tutor to the courts, which only intervene as controlling organ, and include the tutor ad-hoc, each of them assuming a specific function. For most acts, however, the active organs of protection are the guardian or tutor who, usually, are one and the same person.

1. Guardian

The guardian of the minor is person who assumes the proper case of the person of the minor. The guardian of the minor is responsible for caring for the health, lodging, education and other matters affecting his personality.

The following persons are the ones to assume the position of guardianship.

A. The Father and the Mother of the Minor (Art. 219).

The father and the mother of the minor are joint guardians of their minor children. The father and mother can be considered as joint guardians only as long as they are united by a bond of marriage. Thus, if the bond is dissolved, the whole framework of guardianship will be affected.

The express reference to marriage in Art. 219 raises the issue of irregular union. Who is the guardian of children born out of such union? The Family Code does not answer the question in the provision on guardianship. On the one hand there is no doubt as to the existence of a parent child relationship in this case. Article 104 of the family Code, dealing with filiation in the case of irregular unions, refers back to the rules on filiation in the cases of marriage and these apply to irregular unions, as they clearly do not refer to marriage exclusively, but to a relation provided for by law (see. Art. 125(1) and 130 of the Family Code). But this doesn't altogether justify the assimilation of irregular union to marriage under Article 219. It is, however, the opinion of this author that the Ethiopian legislator wanted to consider children born out of irregular unions in the same way as children born out of marriage, as the articles on filiation clearly show. The fact that the legislature has made no mention of irregular union cannot be interpreted as a lack of concern for the protection of children. The reference to the existence of marriage in Article 219 is only made with the purpose of imposing the existence of a legal bond between the parents. Accordingly the words **"during marriage"** can be considered as meaning **during a relation recognized by law**.

B. The Surviving Parent in the case where one of the parents dies (Article 220(1)).

C. The other parent in the case where one parent becomes incapable or is

declared unworthy (Article 220(1)).

- D. The person appointed by the parents when the marriage is dissolved by divorce (Article 221(1)). Where the spouses decide to divorce by mutual consent in accordance with Article 77 of the Family Code, they can decide by agreement as to who should take the guardianship of their children. If they cannot reach an agreement as to who should assume the guardianship, it would be for the court which decides the divorce to decide also as to who the guardian should be.
- E. The mother of the child in the case where the father is unknown (Article 220(2)). This is the logical result of the principle that the parents are the guardians and that the father is exercising guardianship so long as he is able to do so. As unknown father is obviously in no position to manifest his will, the guardianship is entrusted to the mother. If the father is legally determined later on, then he takes up his duties as a guardian from the moment that he is known as the father.
- F. The person appointed by the last will of the surviving parent (Article 222). It should be noted here that the appointment can only be made by the surviving parent. This means that if a parent appoints someone in his will and the other parent dies during the period between his death and the opening of the will the appointment made in the latter shall not be valid, as not having been made by the surviving parent. Another condition is that the appointment can only be made by a parent who had, during his lifetime, been a guardian of the child. This is an essential condition and there can be no appointment by will unless this condition is fulfilled.
- G. Various persons determined by law in the case where both parents are dead and no valid appointment has been made by the will of the last survivor parent (Art. 225) Article 225 lists persons who will assume the position of guardianship in case where both parents have died without a will left by the last surviving parent. These persons are:-

- a. ascendants of the child, which could only mean the paternal and maternal grandfather and grandmother of the child.
- b. In their default, the brothers or sisters of the child who have attained majority,
- c. In their default, the uncle or aunt of the child.

The word in default seem t refer to four possible situations of the person in whom the guardianship is vested. Thus he may:

- Not exist
- Ask for exemption of the function of guardian (Art. 238).
- Be incapable of exercising the function of guardian (Art. 242 – 243).
- Have been declared unworthy of exercising the function of a guardian (Art. 244).

In all these cases, the guardian appointed by virtue of Article 225 is not in a position to exercise his functions and the next person on the list will assume the responsibility.

The appointment of a guardian by the law under article 225 is subject to the possible action of any relative of the child either by consanguinity or affinity (Art. 226). Any relative of the child by consanguinity or affinity may apply that the function of guardian of the child be accorded to him instead of the person who should perform such function under Art.225. The application is to be made to the family members mentioned under Art. 225 or incase where there is a disagreement to the court (Art. 226 (2)). The decision taken by the family members (relatives) or the court upon such application will only take into consideration the interest of the minor (Art. 226(3)).

H. A person appointed by the court in the case where no guardian has been appointed according to the previous rules (Art. 227). Where no guardian is appointed according to other procedures discussed above, the intervention of the courts is the ultimate remedy. The court will take up the matter and consider it upon the application of:-

- ☞ An authority which has received from the law the duty of following up the security of children which may be the Ministry Of Labour and Social Affairs or regional appropriate Bureaus (Art. 227(3)).
- ☞ The heirs of the deceased guardian according to Article 252(2).
- ☞ Any interested party, whether he is relative of the minor or not (Art. 227(2)).
- ☞ The court can also consider the matter by its own motion (Art. 227(2)).

The intention of the legislator clearly seems to be that no child should remain without a guardian and that, accordingly, no single possibility of giving him one should be neglected.

Art. 228 recommend the appointment of specific persons as guardians of the child. These are/is near relatives weather by consanguinity or by affinity.

Ultimately, if no individual can be found for the purpose of exercising guardianship, the court may entrust the function to an institution of assistance under Article 229.

Powers and duties of the guardian

The general powers and duties of the guardian of the minor are defined in Art. 216(1) of the Family Code. This provision entrusts to the guardian the "Proper care" of the minor's person. The field of activity of the guardian is thus broadly defined by these five words. "Proper care of the person". It will be for the courts to determine more precisely the exact meaning of these words. For the moment we can note that the words "proper care" seem to convey the idea that the care of the minor is not left solely to the guardian's will, but that it has to satisfy some criteria which can be objectively ascertained and are represented by the word "proper".

It must also be noted that the power of the guardian appointed by the will of the last surviving parent under Article 222 may be limited or subjected to special conditions by the testator. These restrictions or conditions may, where the interest of the minor so requires, be revoked or modified by the court.

Apart from these general principles, the law also provides for specific rights and duties of the guardian. These are:-

1. Under Article 256, the right to fix the place where the minor shall reside. This does not mean that the minor must necessarily reside at the same place as his guardian as the minor is entitled to have a residence distinct from that of his guardian (Art. 178(2)). The right of the guardian to fix the residence is sanctioned by the power the guardian has to compel the minor to his residence if he leaves it without the guardian's authorization, such authorization being required whenever the minor wishes to change his place of residence. It must be noted that the right of the guardian to fix the residence of the minor is as much a duty as a right as indicated by the words "Shall fix".

As for domicile, Article 190 of the Civil Code provides that the unemancipated minor shall have the domicile of his guardian. Thus no choice is left here to the guardian: his domicile will necessarily be that of

the minor.

2. Under Article 257, the guardian is responsible for the minor's health. If his health is affected, the guardian is bound to take all necessary measures for the minor's recovery. In this respect, it must be remembered that the guardian, under Article 20 of the Civil Code, has the power to submit his ward to any medical examination or treatment beneficial to his health.
3. Under Article 260, the guardian is responsible for the minor's education. No definition of the term education is given here. And this is because the nature and the extent of the education given to the minor will very much depend on the place where he lives, on the circumstances under which he is brought up, on the financial means of his parents, etc. Thus in each case it is necessary to consider the circumstances peculiar to the case of the minor, to determine if adequate education has effectively been given by the guardian to the minor.
4. Under Article 258, the guardian is given the right to direct the upbringing of the minor. In this effort the guardian, when necessary, take disciplinary measures for the purpose of ensuring his proper upbringing. This provision imposes on the guardian the duty of shaping the behavior of the child and make him a disciplined citizen.
5. Under Article 259, the guardian is given the power to control the social contacts of the minor, and this includes control of the minor's correspondence, which the guardian may cause to be delivered to him. The only limitation in so far as social contacts are concerned, is that the guardian cannot, unless he can show good cause restrict the contacts between the minor and his ascendants whether by directly seeing them or by correspondence.
6. Article 261 to 265 deal with the only patrimonial attributions of the guardian, these attributions being generally within the jurisdiction of the tutor concerns exclusively the income of the minor.

The income of the minor is received by the guardian (and not by the tutor) under Article 265. But this article must be read in conjunction with Article 283 which defines the role of the tutor in so far as the income of the minor is concerned. In fact, the guardian does not receive directly the income of the minor as Articles 265 and 283 seem to indicate. He receives it from the tutor who transfers it to him on the conditions and at the time specified by the court under Article 262(2).

7. The last matter in which an intervention of the minor's guardian is possible is that of the acknowledgement of an illegitimate child by the minor. Such intervention is not compulsory and we have seen above that the minor has full power on this matter. Yet a possible intervention of the guardian has the effect that the minor, under Article 140 (2) of the Family Code, no longer has the power to revoke the acknowledgement he has made. Thus the intervention of the guardian makes the acknowledgement irrevocable.

Control over the Guardian

The law provides for various means of controlling the activity of the organs of protection of the minor. In this respect the guardian's activities are controlled in the following ways:-

- Article 245 places the guardian under the control of the courts. Any relative of the minor, whether by consanguinity or affinity, or the public prosecutor may apply for the courts for the removal of the guardian (Art.248 (1)). Such request will have to be justified by the fact that the minor either does not receive the care which his condition requires, or that he does not receive a morally sound education, or that he does not receive instruction in accordance with his disposition (Art.245(1)). It can also be justified by the fact that the minor has committed a criminal offence and when it

appears that such behavior was the result of bad education or a lack of education given by his guardian (Art.245(3)).

- Article 247 requires that a decision to remove the mother or the father or any other ascendant of a minor shall be made with extreme caution. Moreover, such a decision shall never be final and shall be reconsidered by the court at the request of the person who has been removed.
- Before declaring the guardian's removal, the court shall allow him to present his defense, if this is possible without causing serious danger to the person or the property of the minor (Art. 249(1). If the court thinks fit, it may hear the minor himself (Art. 249(2)). The essential guideline of the courts in these matters is the interest of the minor, and they have complete discretion as to how best to do this under Article 249(3).

Termination of the Function of the Guardian

The functions of the guardian of the minor may come to an end when:-

- a. The incapacity of the minor is terminates either because he reached his majority or when he is emancipated (Art. 241(1)).
- b. The minor dies. The Code does not mention absence, but it seems clear that the declaration of a minor's absence would have the same effect, in so far as guardianship is concerned, as the death of the minor (Art. 241(1)).
- c. The guardian dies. Although the law is silent, the declaration of absence of the guardian entails the termination of his functions. (Art. 241(2)).
- d. The guardian becomes incapable. If someone exercising the functions of a guardian is interdicted by a court judgment, he ceases, by the sole effect of that judgment, to be a guardian. Apparently it is only judicial interdiction which brings the guardianship of the minor to an end. Legal interdiction

has no such effect unless the court has declared the person unworthy of exercising the functions of guardianship.

- e. The guardian is declared unworthy of exercising his functions by the court (Art. 241(2)). This can only happen as an accessory to a criminal sentence which either restricts the liberty of the accused or is a death sentence. If the punishment is one of these two possibilities, the court may declare the unworthiness of the guardian.
- f. When a new guardian is appointed to the minor (Art. 227(3)). This provision may seem strange, as it would appear at first sight that no new guardian could be appointed to a minor without the previous departure of the existing guardian. Normally termination of the functions should result in a new appointment and not the vice-versa. Yet it seems that there is a justification for this particular provision. It covers the case of the guardian whose functions come to an end for various reasons, but who is bound to exercise them until he has been replaced so that the minor does not remain without a guardian. In such a case one could assume that the functions terminate as soon as the new guardian is appointed for the minor.
- g. When the guardian is exempted by the court from exercising his functions (Art. 244) or 245). As a result of Article 240, which states the compulsory character of the functions of guardian, grounds for exemption do not relieve the appointed guardian of his functions until his case has been considered by the court. Thus if an exemption is granted, it will be a cause for the termination of guardianship, even if the latter has been exercised for a very short time.

The grounds for exemption from assuming the function of guardianship are the existence of particular difficulties or inconveniences resulting from the guardianship for the person assuming the responsibility of guardianship (Art. 238). such difficulties or inconveniences are supposed to exist in following two cases where the exemption has to be granted by the court on a mere declaration

by the guardian. These are the cases where the guardian is:

- a person who has completed his sixty-fifth year
- Soldier in active service.

Yet the exemption cannot be granted, even in these cases, where the minor is the child of the person applying for exemption.

2. Tutor

The tutor is the persons who takes care of the pecuniary interest of the minor and invest his capital. According to Art 231 of the Family Code, the person who is the guardian of the minor is at the same time his tutor. That means the appointment of a guardian by the court shall be an appointment to the function of tutor as well, unless the contrary results from the circumstances. Thus the appointment of the tutor is the same as the appointment of the guardian and I refer back the distance student to the previous paragraphs about the appointment of guardian for provisions regulating the appointment of a tutor. These are, however, a few exceptions to this principle:

- a. The appointment of a tutor by the father and mother of the child, while they keep the function of guardianship (Article 232).

This power belongs exclusively to the father and mother of the child and not to other persons appointed either by will, by law, or by court. The power lies within the exclusive jurisdiction of the parents. There is no condition to its exercise. They can do as they think it fit.

- b. The appointment of a tutor by the surviving parent in his will (Art. 231(2)). This provision implies that the surviving mother or father may, in his/her will, appoint a tutor who is different from the

guardian. Such appointment by will must of course comply with all the conditions already mentioned in the case of the appointment of a guardian by a will.

- c. The appointment of a tutor by the court (Art. 233). Where the court has the power to appoint a guardian (art. 227 – 228), it also has the power to appoint a tutor who is not the same person as the guardian.

Powers and duties of the tutor

Article 216(2) defines, in the most general way, the powers of the tutor of the minor. It normally restricts them to his pecuniary interests and the administration of his property, and states that, in such matters, the tutor shall represent the minor. Another article which deals with the same principle is Article 269. It repeats the same principle that the minor is represented in all civil matters by the tutor, that he shall be responsible for these interests of the minor. It also introduces the idea that the tutor shall perform his duties *as bonus pater familias*. It must be noted also that, like the guardian, the power of the tutor appointed by a will may be limited or subjected to specific conditions by the testator. These restrictions or conditions may where the interest of the minor so requires, be revoked or modified by the court. Apart from these general principles, various articles of the Family Code consider in detail specific rights and duties of the tutor. You shall now study them in detail.

1. The first specific duty of the tutor is to ensure that no confusion can exist between his property and that of the minor. This is considered in Articles 270 to 272 of the family Code.

Article 272 states the principle that there can be no confusion between the respective properties of the tutor and the minor, and illustrates this point by referring to specific case: that of the deposit

of properties of the minor in the tutor's bank account. This is explicitly forbidden by Article 272(2). This is only a particular example of the more general rule that there must not be on any ground, confusion of the minor's property with that of the tutor.

In order to facilitate the distinction between the property of the minor and that of the tutor, the law prescribes in Article 270 and 271 various inventories of the minor's property by the tutor.

The first inventory must take place within forty days of the assumption of his tutorship by the tutor. It is the basic inventory which will serve as a starting point for all accounts in connection with the tutorship. The inventory must include an evaluation of the various properties included in the inventory and in order to avoid possible undervaluation by the tutor, the law prescribes that reliable witnesses have to be present.

The same rules of inventory apply exactly whenever a succession is devolved upon the minor. Before accepting it on behalf of the minor, the tutor shall make an inventory of the succession under the same conditions as in the above case.

If some damage is suffered by the minor because no inventory is made, the tutor shall be liable to the minor for such damages.

2. Once the basic inventory and valuation have been made, one may consider that the tutor has to keep it up-to-date by regularly rendering account of his activities on behalf of the minor. This results implicitly from Article 297 which states that the tutor shall render account to the ascendants of the minor or his brothers and sisters who have attained majority, acting either individually or jointly.

3. Article 273 orders the tutor to deposit in a safe place (usually a bank) all securities, articles of value, important documents and other similar things which belong to the minor, on the condition that, no inconvenience results therefrom for the administration of the minor's property.
4. Under Article 272, the tutor is given the power to alienate corporeal chattels, stocks and securities belonging to the minor.
5. Article 278 obliges the tutor, with the exception of the tutor who is the father or the mother of the child, to alienate all securities to bearer which come in to the property of the minor or if he does not wish to alienate them to convert those into registered securities within a period of three months after they devolve upon the minor.
6. Under Article 279, the tutor is obliged to pay all debts of the minor. He has to also collect any income from his capital. At the same time that he receives such capital or income the tutor has the right to give receipt for the person who pays.
7. Article 238 to 282 deals with the administration of capital belonging to the minor. The principles laid down in these articles are that capital belonging to the minor must be invested by the tutor as soon as it exceeds five hundred Ethiopian birr. Article 281 fixes a time limit within which capital must be invested. It is at a minimum of three months of the moment when the capital is at the disposal of the tutor.

Article 282 provides for possible sanctions for the tutor who does not comply with the provisions of Article 280 and 281.

8. It is the duty of the tutor to deliver on a monthly interval, unless the court prescribes otherwise, that part of the income of the minor which shall be used by the guardian to ensure the education and maintenance of the minor (Art. 283).

9. Article 284 authorizes the tutor to enter leases on behalf of the minor. But there is a limit to his power in this respect. He cannot bind the minor for more than three years after he reaches his majority unless it has been authorized by the court.
10. As far as successions are concerned, it is provided under Art. 285 that the tutor can either accept or renounce them on behalf of the minor. But, whereas there is no limitation to his power to accept a succession devolving upon the minor, he cannot renounce it unless the succession is insolvent.
11. The powers of the tutor concerning donations or bequests are defined under article 264. According to its provision the tutor may not refuse a donation or bequest made to the minor unless he can show that it is unimportant. On the other hand he cannot make donation on behalf of the minor unless they are small presents required by custom. This clearly refers to all kinds of presents which are exchanged on occasions such as anniversaries, birthdays, etc. The law clearly limits the powers of the tutor in this respect. Not only must the present be customary but they must also be of little value. Even if custom requires valuable presents it is not within the power of the tutor to make them.
12. Under Article 287, there is a very clear restriction on the powers of the tutor. In no case whatsoever may the tutor stand as guaranty for the debts of another person on behalf of the minor. The result of this absolute and clear cut provision is that no minor can ever be found in the status of surety for a debt.
13. Concerning compromise agreements, the tutor cannot, under Article 301, enter into such agreements on behalf of the minor without the authorization of the court, unless the amount involved in the compromise agreement is less than one thousand Ethiopian birr in which case the tutor is free to act alone.
14. Contracts between the minor and the tutor cannot exist, unless

there is an authorization from the courts (art. 289) and the same is true for the acceptance by the tutor of any assignment of rights or claims against the minor. No regard is made here to the amount involved. Such acts are totally forbidden unless the court authorizes.

15. The same rule is true concerning loans contracted on behalf of the minor. They can be concluded by the tutor only with the authorization of the court (Art. 290).

16. Under Article 291 the tutor has an obligation to consult with the minor, if:-

- The minor has reached the age of fourteen. However the consent of the minor will not relieve the tutor of his liability for any misdeeds.

17. Under Article 292 and 293, the law gives fairly wide powers to the tutor to authorize the minor to contracts of daily life. This power is in fact limited in two ways:-

- the act to be authorized should not exceed three hundred Ethiopian birr, or
- the act should not be one which requires the authorization of the court to be performed by the tutor himself.

Under Article 294, the tutor is ordered to stand as a surety in favour of third parties, for the obligation which the minor has assumed by virtue of the authorization.

18. Under Article 295 the tutor is not allowed under any circumstances, to make a will on behalf of the minor. Making a will is strictly personal to the minor.

19. Under Article 296 the tutor is given the right to be refunded all expenses which he has incurred in connection with his tutorial activities.

The family Code does not make clear how these refunds are to be made. The most practical solution seems to be for the tutor to render an account of his expenses in his regular account to the ascendants or brothers and sisters of the minor as indicated under Art. 297 and ask them at the same time for an authorization to be paid upon their instruction.

Dear distance student, these refunds are the only payments a tutor may receive for the performance of his functions, as the office is gratuitous under Art. 250(1). However, it is provided under article 250(2), that the tutor may be entitled to compensation when the administration of the property of the minor takes a considerable part of his time.

Under Article 250(3), such compensation may only be taken from the income of the minor and may not exceed one third (1/3) of such income.

If the tutor acted within the limits of the rights and duties which are described above, the acts which he will perform on behalf of the minor will be considered as being within the limits of his powers. As a result they will not be subjected to a possible invalidation based on the fact that they have been performed by the minor. They will be binding on the minor, exactly as if they have been performed by him, being an adult.

Control over the power of the Tutor

The tutor is certainly the organ of protection which is subject to the heaviest control under the law. Under the family Code the control over the tutor is made at three stages.

1. Before tutorship beings

- ☞ The tutor, as soon as he is appointed must under Article 270, draw up an inventory of the property of the minor in order to avoid to avoid possible contusion between his property and that of the minor.
- ☞ Once the inventory is drawn up, the tutor will be given instruction by the court concerning the management of the property of the minor (Art. 274).

This requirement applies to the tutor who is not the father or mother of the child and up on the application of one of the ascendants, or one of the minor's brothers or sisters who has attained majority (Art. 274(1)).

Once the inventory is made and instructions are given to him the tutor is free to begin the full exercise of his activities.

2. During The Tutorship

- ☞ While the tutorship lasts the original inventory must be dept up to date by the tutor which are to be submitted to the ascendants or brothers or sisters of the minor. The father and the mother when they exercise tutorship personally, are exempt from such obligation.

- ☞ Many specific kinds of acts of the tutor are subject to control by the court or, in some cases by other people. this is the case for succession developing upon the minor, of which an inventory must be made in the presence of reliable witnesses (Art. 271); for leases which would bind the minor for more than three years after he attains majority, for renunciation to succession devolving on the minor unless the succession is notoriously insolvent (Art. 285); for the refusal of donation or bequest made to the minor unless it is unimportant (Art. 286); for entering into contract with the minor or accepting any assignment of rights or claims against the minor (Art. 289). All these acts cannot be performed by the tutor freely, unless he has received the permission of the court. If the tutor performs without the permission of the court, he violates legal provisions and incurs the liability attached to such violation.
- ☞ The tutor may be removed from his function by the court where it appears that he administers badly the property of the minor or where he does not comply with instructions given validly to him by the person or institution who entrusted him or he is declared by a court insolvent (Art. 246). The grounds for removal are thus different from those in the case of the guardian, but exactly the same limitations, conditions, and procedures exist in both cases.

3. After the Tutorship has ended:-

- ☞ When the function of the tutor comes to an end as the consequence of the death or attaining of age by the minor, his emancipation, or the removal or resignation of the tutor, the tutor must render an account of his administration to his former ward or his heirs (315(1)). An inventory of the rights and duties pertaining to the minor shall be prepared by the tutor (315(2)). At the same time that he renders his accounts and the inventory, the tutor shall also handover to the minor all properties belonging to the minor (Art.

315(2)).

- ☞ If, at the beginning of his functions the tutor was negligent and did not prepare an inventory of the property of the minor in violation of Article 270, the minor is allowed to prove by all means the fact that such property effectively belongs to him Article 316(1)). Among these means, the law makes express reference to the production of reliable witnesses in Article 316(2). Proof to the contrary can always be presented by the tutor. Exactly the same rule applies where the tutor was negligent when some property developed on the minor through a succession (Art. 316).
- ☞ The accounts presented by the tutor have to be approved by the minor or his heirs (Art. 317).
- ☞ Under Article 309, special liability is imposed upon the tutor when his behavior causes some damage to the minor. This is particularly true when the tutor has been negligent, has mismanaged the affairs of the minor, has not obeyed instructions given to him by the court, or has acted in cases when his interests were in conflict with those of the minor.
- ☞ As for Article 318, it establishes a period of limitation for the action brought by the minor or his heirs against the tutor and based upon the liability of the tutor in connection with acts performed during the tutorship. This action will be barred, if they are not instituted with acts performed during the tutorship. This action will be barred, if they are not instituted within five years of the cessation of the functions of the tutor. Yet, even if the period of five years has lapsed, the minor, but not his representatives or heirs, can still claim the restitution of his property from his former tutor, or institute an action against him based on unlawful enrichment.

Termination of Function of the Tutor

The rules described above in so far as guardianship is concerned are valid without any exception to the termination of the functions of the tutor of the minor. All articles of the Code apply to both the guardian and tutor. You need any to revisit the discussion on the termination of the guardian of the tutor.

3. Tutor Ad-hoc

The tutor ad-hoc is appointed by a court in the place of the tutor when there is a conflict of interest between the tutor and the minor or between may minors of whom the tutor is the common representative. The function of the tutor ad-hoc must be exercised by their holder as soon as he is aware that he has to exercise them. He cannot refuse to do so even if he intends to apply for exemption. His situation is exactly the same as tat of the tutor. All rules applicable to the tutor proper are also pertinent to the tutor ad-hoc (See Art. 254 and 308).

4. Courts

The courts are the ultimate organ of protection of protection of minors. As discussed else where in this module, the courts have a very wide power in controlling the activities of the guardian, tutor and a tutor ad-hoc of the minor and ensuring the wellbeing of the minor. Since the role of the courts is extensively discussed in connection with other topics discussed earlier, no much need be said here.

Termination of the Disability of the Minor.

Minority (i.e. the disability of the person below the age of eighteen years) comes to an end in two ways:-

1. by reaching the age of eighteen years, or
2. By Emancipation

Reaching the age of eighteen is the most common way in which a person ceases to be a minor. This results from the definition of minority as stated in Article 215 of the Family Code: a minor is one who has not attained the full age of eighteen years. It must be emphasized that the law requires the full eighteen years to have been reached before minority ceases to exist. This means that one is still a minor while one is, according to the common expression, in one's eighteenth year.

Emancipation may come from either:-

- The decision of a court to emancipate the minor, Art. 312, or
- The fact of concluding marriage by the person below the age of eighteen (Art. 311).

When a minor is married in accordance with the provision of Art. 7(2) of the family Code, then the sole fact of marriage will emancipate him and bring him to the class of persons with capacity.

Emancipation, as indicated above, may also be abstained from a decision of a court. Where a minor has attained the age of fourteen years, his guardian or his tutor or any interested person may apply to the court for his emancipation. after considering the conditions of the minor, the reason applied for and where it finds that the emancipation is in the interest of the minor, the court can decide to emancipate (to free from his incapacity) the minor.

The effect of emancipation obtained by the sole fact of marriage or by decision of a court of law is the same. The emancipated minor will be considered before the law to have attained majority (Art. 313).

Another important point in connection with emancipation is, the fact that emancipation is irrevocable (Art. 314(1)). Even the dissolution of the marriage will have no effect on the effect of the emancipation, unless the court, exceptionally, give otherwise decision at the time when it pronounces the

dissolution of the marriage (Art. 314(2)(3)).

Insanity and Infirmary

The rules governing insanity and infirmity are contained in the Civil Code. Accordingly all the articles cited in these sub section is that of the Civil Code unless otherwise indicated.

Article 339 of the Civil Code defines insanity in the following way:-

An insane person is a person who as a result of insufficient mental development or a mental disease or a comparable lessening of the reasoning capacity due to, such as, feeble mindedness, drunkard, habitually intoxication or prodigality is under an incapacity to understand the importance of his actions.

Thus there are two elements in this definition to identify a person as an insane one. These are:-

1. The incapacity to understand the importance of one's actions, and
2. this must be due to insufficient mental development of the individual, or mental disease or a lessening of the reasoning capacity due to drankardness, habitual intoxication, feeble mindedness or prodigality.

These two elements must exist simultaneously in order to consider a person as an insane. Thus if a man is occasionally drunk, the first condition exists, but not the second.

In the same way a man can be senile and yet still be able to understand fully the importance of his actions, the second condition exists but not the first one.

According to Article 340, some persons can be assimilated to insane persons. These are infirm persons.

Infirm persons are defined by the code as a person with a permanent infirmity like deafness, dumbness or blindness as a result of which they are not able to take care of themselves or administer their property. The code refers here to a deficiency in the physical constitution of the individual as opposed to a deficiency in the mental constitution which is considered above.

The law makes further distinction between insanity or infirmity and notorious insanity or apparent infirmity (art. 341-342 and 343). The conditions required for notorious insanity depends upon the place of residence and are as follows:-

1. in communism of tow thousand or more inhabitants, the registration as an inmate of a hospital or of an institution for insane persons or of a nursing home, as long as the person remains in such institutions by reason of his mental condition by reason of his mental condition.
2. In communes of less than two thousand inhabitants, a watch dept over a person by this family or those with whom he lives, being required by his mental condition, and the fact that his liberty of moving about is, for this reason, restricted by those who are around him.

These are the tests to determine whether the insanity is notorious or not. Thus notoriety is a matter of fact, which has t be examined carefully in each case. It is also meant to be a temporary character of insanity as it only lasts as long as the factual conditions leading to notorious insanity exist.

Thus a person escaping from a mental hospital would not be considered notoriously insane for the period during which he is out of the institution.

In so far as apparent infirmity is concerned, the criteria is that the infirmity should under normal circumstances appear to all persons concerned. It that is the case they will be governed by the same rules as in the case of notorious insanity.

Legal Effects of Insanity and Infirmary

In the case of insane or infirm persons whose conditions are not notorious or apparent as defined above, their condition is without special effect on the juridical acts they can perform (Art. 347). That means they are able to perform all acts of civil life without any account being taken of their insanity or infirmity. Yet, they are protected in a slightly specific way by the law under Article 347(2) which enables them to invoke a defect in consent if their insanity or infirmity has been the cause of such defect. It must be noted that the law does not establish any presumption in favour of the insane or infirm person. They have to prove that their consent was vitiated by their insanity or infirmity. This is the only way, for the infirm or insane person to have his juridical acts annulled. He cannot, under Article 347(1), challenge the validity of his acts solely because he is insane or infirm. If he wishes to challenge the validity of an act, he has to bring a suit on the basis of a possible vice of consent caused by his insanity or infirmity at the time his consent was given. This is obviously a very difficult task and it virtually makes the provisions in article 347(2) inapplicable.

Under Articles 348 and 349 his heirs or creditors, who are the main persons who should be protected against the results of insanity or infirmity, apart from himself, cannot, as a rule, demand the annulment of an act performed by the infirm or insane person on the grounds that he was not able to give a consent free from defects as a result of his insanity or infirmity. They can only do so when the infirmity is apparent from the act or when the interdiction of the infirm or insane person has been requested even if such request has been made after the act in question is performed.

In conclusion not much protection is offered by the law to the insane or infirm person who is not qualified as notoriously insane or apparently infirm person or who is not interdicted by a court of law clearly the law wishes insane or infirm

persons to make their condition notorious or apparent or to be interdicted so that they can take advantage of the protection of the law.

As far as persons whose insanity or infirmity is notorious or apparent, the situation is in some ways similar and in some respects different from that of persons whose insanity or infirmity is not notorious or apparent. It is similar in the sense that the principle of the full capacity of the infirm or the insane remains in fact, as in the case where the infirmity or insanity is neither notorious nor apparent. Thus a notoriously insane person or an apparently infirm person can still perform by himself all juridical acts without any restriction. He will be extra-contractually liable as though he were of sound mind under Article 350(1), and the same is true under Article 350(2) about his liability resulting from obligations under the provisions on unjust enrichment. However, the notoriously insane or the apparently infirm person is granted more protection than the person whose insanity is not notorious or infirmity not apparent. Under Article 343, the law enables him or his representatives and heirs to claim the annulations of any juridical act performed by him at the time and in the place where the insanity or infirmity was notorious or apparent. There is no need here to plead the defect in consent. The notoriety of the condition of the insane or infirm person is enough in itself to allow him to require the annulations. There is a presumption of a defect in consent as soon as the insanity or infirmity is notorious or apparent. As a result of such presumption the provisions of the civil code relating to the annulation's of contracts on the ground of error (Articles 1696-1703) shall apply (Art. 344).

Thus the notoriously insane or apparently infirm person is protected. But so also are third parties who contract in good faith with the insane or the infirm, as under Article 345, the insane or infirm person is liable for the damage caused to the third party as a result of the annulation's of the contract. The good faith of the third party is presumed, under Article 346(1), unless there is proof to the contrary. But in the case of article 342, if the third party lives in the same commune as the

insane or infirm person or in an adjacent commune, his bad faith is presumed and no proof is possible to the contrary (Art. 346(2)).

Judicial Interdiction

to interdict means to prohibit someone from doing something or taking away the capacity of a person. judicial interdiction exists in the case where a person is insane as defined under Article 339 of the civil code and where he has been interdicted by the court because his health and his interest so requires, or because his heirs interest so requires (Art. 351(1) and (2)). the infirm, defined under Article 40, can also be interdicted by the court when he is incapable either to given himself or to administer his estate (Art. 351(3)).

an application for judicial interdiction by:-

- The insane or infirm person himself
- Any of his relatives by consanguinity or astinity
- The public prosecutor

any of these persons may apply for the interdiction of the insane or infirm person and there is no preference among them.

in order for the decision of interdiction to be made, the person whose interdiction is required must be alive, but he may still be a minor.

Before declaring the interdiction, the court has to check the factual conditions establishing insanity or infirmity exist and the necessity for the interdiction.

the person whose interdiction is required must be seen by the court, unless such appearance is impossible in which case the court will delegate either one of its members, or an expert (Art. 354).

An appeal can be made from the decision of interdiction by any of the persons competent to make an application for interdiction. The law under Article 355 provides only for an appeal from the decision of interdiction. Then how about an appeal against the decision of the court, which has dismissed a request for interdiction?

When the court decides in favor of the interdiction, it may give to its judgment a retroactive effect by deciding that the insanity of the interdicted person was publicly known since such date as the court wishes to mention with the sole restriction that it can not precede the date of the application for interdiction by more than two years (Art. 352).

Legal Effects of Judicial Interdiction

Once the interdiction of a person has been declared by the courts, the rights and duties which are normally exercised by this person can no longer be exercised by him and he becomes incapable. The code establishes the principle that a judicially interdicted person is subject to the same rules of protection as a minor (Art. 358). Thus the judicially interdicted person can only exercise those rights or incur those obligations, which he is specifically allowed to exercise or obliged to incur the provisions of the law. These include:

- contracting marriage upon permission by the court under Article 15 of the R. Family Code.
- Requesting a divorce or putting an end to irregular union on the condition that the guardian agree to such act (Art. 370(1)).
- disowning a child under the condition that the court agrees to such act (Arts. 270(2) of the civil code and Art. 175(1) of the R. Family Code).
- Any act which the court authorizes the interdicted person to perform in the judgment of interdiction or in a judgment posterior to the judgment of

interdiction (Art. 371)

If a judicially interdicted person performs an act, which he has no power to perform, such act can be invalidated in the same way as an act committed by a minor. The rule is general and does not admit exceptions, even if it is proved that the act was performed by the insane persons during a lucid interval (Art. 373). This means that the interdicted person, his representatives, or his heirs can ask for the annulment and that the provisions of the code dealing with nullities resulting from mistake shall apply. Yet Article 26993) extends the field of persons capable of requesting the nullity in the special case where the interdicted person has been married without the authorization of the court. In such case, any interested person is entitled to apply to the court to declare the nullity of the marriage.

6-2-6. Protection accorded to judicially interdicted persons

Once a person is judicially interdicted he cannot exercise his rights and duties by himself. The exercise of his rights and duties will be transferred to organs that are organized by the law for the protection of judicially interdicted persons. As provided under Article 558 of the civil code except for some exceptions a judicially interdicted person is subject, in respect of the protection of his person and property, to the same rules of protection as a minor. All rules pertaining to the protection of the minor are applicable to the judicial interdicted person except those special provisions (Art. 359-379) which are specifically applicable to the conditions of the judicially interdicted person.

Thus all organs of protection applicable to the minor are also applicable to the judicially interdicted person although there is a slight variance in their constitutional and responsibilities.

Dear distance student, in this section you will study the organs of protection of

the judicially interdicted person. Since, as indicated above, the organs of protection of the judicially interdicted person are almost identical with that of the minor we need not to repeat all that is said. here we will focus only on those points where the organs of protection of the judicially interdicted person differs from that of the organs of protection of the minor.

1. Guardian of the judicially interdicted person the guardian of the judicially interdicted person is always appointed by the court in the judgement pronouncing the interdiction (Art. 359). The rules concerning the appointment, the compulsory nature of the functions and the incapacities to exercise such functions are similar to those existing in connection with minor. The only difference is that under Article 359 no one who is not the spouse, the ascendant or descendant of an interdicted person can be forced by the court to retain the functions of guardian of an interdicted person for more than five years. Everyone is free to do so, but cannot be forced into it.

As for as the powers and duties of the guardian of the judicially interdicted person is concerned, according to Article 358 of the civil code, he is in the same position as the guardian of the minor. thus we can assume that his rights and duties are similar to these of the minor except for the cases which are specially provided under Article 362 and the follows.

These special cases are:-

1. Under Article 362, it is an obligation for the guardian of the judicially interdicted person to ensure that the interdicted person lives in the place where his interdiction has been given publicity as required under Article 356. This is an essential point in the protection of the public and of the interdicted person, as judicial interdiction is conceived on a local basis. if the interdicted person is free to move around the country without control, the publicity required under Article 356 and 357 will be without

value.

2. As in the case of minority, the guardian administers a part of the income of the interdicted person in order to provide for his case and maintenance (Art. 363). But unlike minority, the guardian of the interdicted person is required to render accounts of his use of that income.

The guardian of the judicially interdicted person is liable for third parties who in good faith, contracted with the judicially interdicted person (Art. 374). But his liability only exists when there is a prejudice caused to the third party. The invalidation of the contract. Thus for Article 374 to be effective, there must be an invalidation of the contract entered into by the judicially interdicted person and a prejudice resulting therefrom for the contracting third party.

The functions of the guardian of the judicially interdicted person may come to an end when:-

- a. The interdiction is withdrawn by the court
- b. The judicially interdicted person dies or is declared absent
- c. The guardian dies.
- d. The guardian becomes incapable
- e. The guardian is declared unworthy by court
- f. A new guardian is appointed to the interdicted person
- g. The guardian is exempted by the court from exercising his function
- h. the guardian ask for exemption under Art. 359 (2).

2. Tutor of Judicially Interdicted person

The tutor of the judicially interdicted person is appointed exclusively by the court, in the same way as the guardian is the same limitations also exist in so far as an appointment for more than five years of a person who is not the spouse, the ascendant or the descendant of the interdicted person is concerned.

While in the case of the minor a distinction is made between tutors in general and tutors who are the father or the mother of the child, this is not true for the tutor of the judicially interdicted person under Article 365. The mother or father of such person, when exercising the function of tutor are not differentiated from other tutors and are subject to exactly the same control as any ordinary tutor.

Article 366 provides a rule which is absolutely similar to the one existing in the case of minority bind the judicially interdicted person for more than three years after his disability has ceased unless there is an authorization from the court to that extent. thus the tutor is completely free to enter into any lease which would not bind the incapable person beyond that period and he is free to enter into any kind of lease authorized by the court.

In so far as donations are concerned, under Article 367, there is no limitation on the power of the tutor to refuse donations made to the judicially interdicted person. the tutor can also make donations on behalf of the interdicted person, provided that:-

- The donation is made to the descendants of the interdicted person, and
- They are authorized by the court

The control of the tutor of the judicially interdicted person is organized under Article 368, in the same way as the control of the tutor of the minor. thus all the above mentioned rules dealing with the control of the tutor of the minor apply to the control of the tutor of the judicially interdicted person.

There are, however, special rules established in connection in connection with the control of the tutor of the judicially interdicted person. thus, under Article 367 donations made by the tutor of the judicially interdicted person has to be approved by the court.

The function of the tutor of the judicially interdicted person terminates in the same way as the guardian and there is no need to repeat it.

6.2.7. End of the Incapacity of Judicially Interdicted Person.

Judicial interdiction and the incapacity it entails ceases through a regular procedure of withdrawal of interdiction. This means under Articles 377 and 378:-

- An application to the court for withdrawal of interdiction by the persons who are entitled, under Article 353, to apply for the interdiction. but contrary to what is provided under Article 353 the interdicted person himself is not allowed to require the end of the interdiction. such power is vested by the law in his guardian and tutor the application is to be made to the court and the law does not say whether or not it must be the one which has pronounced the interdiction.
- Once an application is filed, the court will have to be satisfied with the improvement in the condition of the formerly insane or infirm and interdicted person. If it appears that the cause of interdiction have disappeared, which means that the interdicted person is now able to conduct himself and to take care of his interests, the court can decide to withdraw the interdiction.

As indicated under Article 379, the effects of such withdrawal will be the same as emancipation. This means that the formerly interdicted person will now have his full capacity with respect both to his personal conduct and his patrimonial interests. but the irrevocability of emancipation does not apply to the withdrawal of the interdiction. it is obvious that if the mental or physical condition of the formally interdicted person necessitates a new interdiction and such interdiction may be pronounced by the court in spite of the previous withdrawal.

6.2.8. Legally interdicted persons

This kind of interdiction results from the law, and more particularly from the penal law. This is clearly stated in Article 380, which define legal interdiction.

It appears that interdiction is not among the principal or secondary punishments considered under the criminal code. Interdiction, in the sense the civil code gives meaning to the word, i.e. the withdrawal of the power to administer one's property, does not appear in the criminal code. The only problem which is considered in the criminal code under Art. 122 is the deprivation of "Civil" rights. Thus one may conclude that the provisions of the civil code on legal interdiction are not yet enforceable.

Contrary to minority and judicial interdiction, legal interdiction concerns exclusively the property of the person subject to the interdiction. As a result his powers, as far as his person is concerned, remain normal. This is confirmed by Article 386 of the civil code, which states the right of the legally interdicted person to marry, divorce, acknowledge an illegitimate child or disown a child. these acts can not be performed in his name by the tutor. in so far as his property is concerned, the legally interdicted person is subject to the same rules as the judicially interdicted person. This principle is affirmed under Article 381. if the interdicted person perform an act which is in excess of his powers, such act shall be of no effect.

Since legal interdiction affects only the power of the individual to administer his property and not the regulating of his person, a legally interdicted person has only a tutor for the protection of his pecuniary interest. as indicated under Article 382 a legally interdicted person has no guardian.

The tutor who administers the property of the legally interdicted person is appointed by the court under Article 383. the person appointed to these function

may be replaced at his own request or at the request of the spouse or a relative of the interdicted person, or at the request of the public prosecutor. Once a person has accepted the functions, he cannot be replaced unless he has a good reason and established to the satisfaction of the court. However, once the tutor of a legally interdicted person has served for five years, his request shall be accepted by the court (Art. 384).

under Article 386(3), expressly forbids the tutor from performing some personal acts on behalf of the legally interdicted person to contract marriage, acknowledge an illegitimate child, request divorce or disown a child.

The function of the tutor of the legally interdicted person comes to an end when:-

- The tutor is relieved of his function by the court by showing good cause (Art. 384).
- the interdiction comes to an end, when the person has undergone the interdiction for the prescribed duration (Art. 388).
- the interdicted person or his tutor dies
- The tutor becomes incapable or is declared unworthy by the court.
- a new tutor is appointed.

The incapacity of the legally interdicted person comes to an end as soon as the period the interdiction which is provided in the judgment of interdiction expires (Art. 388).

i. Foreign Nationality

Foreign nationality is, according to Articles 194 and 389-393 of the civil code, another source of incapacity. The sources of the incapacity in this case is the fact of a person having a nationality distinct from Ethiopian nationality. but the incapacity that results from foreign nationality is not general. in fact the principle as laid down under Article 389(1) is that all rights and duties under the civil law

are guaranteed for foreigners and it is only exceptionally that foreigners are under incapacity in respects of the exercise of some civil rights. The objects of the incapacity of foreign nationals are:

- The owning of an immovable property in Ethiopia, and
- The free exercise of professional activity

Under Article 390 foreigners are prohibited from owning an immovable situated in Ethiopia. But the incapacity of the foreigner to own an immovable situated in Ethiopia is not absolute in the sense that the foreigner may receive an authorization, from the appropriate government office.

If a foreigner acquires immovable in Ethiopia without authorization from the appropriate government organ, he is obliged to sell such immovable to an Ethiopian within a period of six months.

If the foreigner does not comply with an order to sell given to him by the competent authority, within a period of six months, the property can be seized and sold by the competent authority. The proceeds of the sale shall be paid to the foreigner by deducting twenty percent as a penalty and also to cover the expenses resulting from the process of the sale. The amount to be deducted will be reduced to only ten percent when the property has been acquired by succession (Art. 392).

Article 393 provides that the provisions that prohibit the acquisition of an immovable by foreigners is applicable to the case where a foreigner acquires rights for a period exceeding fifty years or terminable upon death.

Another incapacity of foreigners all concerns the free exercise of their profession. Under the Ethiopian employment law (Civil service law and labour law) foreigners can be employed only after securing a permit from the ministry of labor and social affairs. Furthermore a foreigner can enter into a contract of employment

only for definite period of time and in no can they can enter into permanent contract of employment.

It is quite clear that these incapacity of foreigners disappears when the foreigner adopts Ethiopian nationality.

6.2.9. Incapacity from the Exercise of Specific Functions.

Article 194 of the civil code provides that incapacity may result from the exercise of some functions or assuming some position. However, it does not refer to them in more detail. Defining the cases where incapacity results from the exercise of a given case is left to special provisions within the code or to special legislation. For instance we can mention as a special incapacity the case where the tutor of the minor cannot contract with his ward under the Revised Family Code. This is clearly an incapacity connected with the exercise of specific function.

Review Questions.

1. Explain the difference between the holding of rights and the exercise of rights.
2. Explain the rationale why the law puts some category of persons under incapacity as regards the exercise of some rights and duties.
3. Elaborate the distinction between general incapacity and specific incapacity.
4. Dawit, aged 16, wants to buy some new clothes for the Ethiopian new year. He had a good job and thought he could repay a loan. He, therefore, borrowed seventy-five birr from a money lender after his father had given him a written authorization to borrow. Dawit did not show the authorization to the money lender as the latter made no inquiry about his age. Dawit bought the clothes but now he does not want to pay the money

back to the money lender on the ground that the contract of loan is invalid.

What remedies are available for the money lender?

5. A seventeen years old girl, Bekelech, was injured by a car driven by Melaku. Meladu's insurance company agreed to compensate Bekelech who was given 2000 birr. Bekelech spent the money on an education course in type writing. When she reaches the age of eighteen she told Melaku that the compensation was invalid as she was a minor and that he must pay again.

Is Melaku liable to pay again?

6. Ato Habte was continued to a lunatic asylum because he was subject to fits of insanity. During one of his sane periods Ato Habte expends from the asylum. He met a man, with whom he became friendly, in a bar. The man offered to buy Habte's farm for 10,000 birr. Habte agreed and signed a contract of sale which was witnessed by the barman and other people present.

When the man took over the farm, Habte's brother, who is also his heir, objected. He said the farm is worth at least 30,000 birr and that Habte was not only drunk but also insane when he sold it. Unfortunately Habte spent some of the money on a ten-day drinking bout in which he entertained everyone he met. The rest of the money has disappeared, either lost or stolen, Habte does not remember.

Habte is now back in the asylum. His brother wants to nullify the sale of the farm.

Can he be successful in invalidating the contract of sale?

7. Ato Hailu was sentenced to life imprisonment for a political offence and was legally interdicted. He escaped from prison in Addis Ababa and sought political asylum in Somalia. His extensive property in Ethiopia is under administration of a tutor. The tutor now wished to give up his office of tutorship. Ato Hailu wishes to make a new will and he also wishes to appoint a new tutor to send him the income from his property.

Advise Ato Hailu on the following Points:

- A. Whether the tutor may resign and whether Ato Hailu may appoint another.
 - B. Whether Ato Hailu may make a will
 - C. Whether a new tutor may send to Ato Hailu the income from Ato Hailu's property.
8. Explain the similarities and Differences between judicial interdiction and Legal interdiction.

Chapter Seven

The End of physical Personality

Objectives:- After completing the study of this chapter, the distance student will be able to:-

- Know when physical personality comes to an end;
- Understand the concept of declaration of absence
- Understand the procedures to be followed in declaration of absence
- Know the effects of declaration of absence
- Know how declaration of absence terminates and its effect.

a. Introduction

Dear distance student, in the preceding chapter you have studied how physical personality commences, the protections accorded to physical persons and the various attributes of physical persons as well as their presumed ability to exercise their rights and duties. physical personality, however, is not eternal and in one way or another comes to an end. In this chapter you shall study how physical personality terminates.

The civil code recognizes two ways in which physical personality comes to an end these are:-

1. Death, and
2. Declaration of absence

There is no reference, in the civil code to such concept as civil death, which is common in some western legal system. Civil death applied, for example, to persons entering monasteries or to criminals sentenced to prison for life. Monks and nuns were declared dead as soon as they entered into monastic life and criminals were so declared by the court decision sentencing them for their crimes. the effect of such action or sentence was, in all respects, equivalent to physical death. The same was true in systems where slavery existed. as soon as someone became a slave, he ceased to be a person and became a thing, and thus his legal existence was brought to an end. The Ethiopian law recognizes only death and declaration of absence as the only events that bring to an end physical personality and you will study them in the order.

b. Death

Article 1 of the civil code deals with the problem of the end of personality by death when it states that human persons hold rights and duties from birth to death. thus in the same way that physical personality generally coincides with physical existence, it also comes to an end when the human being ceases to exist physically, i.e. when he dies personality which begins at birth, ends with

death. The civil code does not provide a detention for the word death. Thus problems may arise with the development of modern medical science, especially in cases where a person has been clinically dead for some period of time and then revive artificially.

c. Declaration of Absence

as stated under article 154 of the civil code a person may be declared absent if:-

- he has disappeared, ie. he is no longer seen by others, and
- the complete lack of news about that person for a minimum of two years.
-

If such situation exists, any interested person may apply to the court of the place where the person who has disappeared had his principal residence. The law does not limit to any extent the natures of the persons who can apply to the court. It is sufficient for the applicant to have some interest in the declaration of absence. Thus he can be a guardian or tutor, a representative, a parent, an heir, a creditor, etc, of the absent person.

As soon as the application is made, the court shall prescribe its publication in the manner and place which the court thinks appropriate. The publication is mandatory in the place of the last principal residence of the absentee (Art. 155). The court is free as to the means of publicity and it would normally include oral or visual means such as radio, television, etc, apart from the more clerical means, such as a posting of a notice.

The court may also order that an inquiry be made, with the assistance of the public prosecutor, in all places where the court considers it to be useful and in particular where the absentee had his last residence and where his presence was noticed for the last time (Art. 156).

All these preliminary actions lead to the declaration of absence by the court. The duty of the court to declare the absence may be mandatory or discretionary depending upon the circumstances of the case.

Declaring the absence of the person is mandatory for the court under Article 159 if:-

- the application to the court is made after a minimum of five years has lapsed since the disappearance, and
- there has been no news of the absent person following the publicity prescribed by the court upon the application being made.

If these two conditions are not met the court has to consider the probability of the death of the absent person, and if such death seems probable, it shall declare the absence (Art. 157). Such decision is entirely within the discretion of the court, but it must consider two particular sets of circumstances: the possible appointment of a representative by the absent person prior to his departure and the factors which might impede the arrival of news from the absent person. Within these limits the final decision lies with the court, provided that it meets the basic requirements of a thorough and extensive enquiry. In these cases, it must be noted, the court is not bound to deliver judgment immediately. It can either postpone its decision for a year or provide for the enforcement of the judgment only after the lapse of a year (Art. 158).

In all cases, whether the declaration is mandatory or not, the court shall, in its judgment, establish the day when the last news of the absentee was received. This is important as this date will be the point of reference for all effects resulting from the declaration of absence (Art. 160).

Under Article 161, the court may also deliver a judgment declaring the death of the absentee in the case where such death seems certain and not simply

probable, as in Article 157. The kind of decision is again within the discretion of the court on the basis of the available evidence. This is the any case where legal death results from something other than the end of physical life. In such case the provisions absence will not apply.

All the effects of physical death will apply.

7.3.1. Effect of Declaration of Absence

The effects of the declaration of absence can be divided into two categories: general effects and special effects. These consequences which will be discussed in the following paragraph are only these of a simple declaration in the following paragraph are only these of a simple declaration of absence. If this is accompanied by a judgment declaring the death of the absent person, it will have all the consequences of physical death and the provisions on absence are not applicable.

1. General Effects of Declaration of absence

A declaration of absence affects all those rights and duties whose enforcement depends upon the death or existence of the absentee.

Insofar as rights are concerned (Art. 165), persons who have rights dependent on the death of the absentee may enforce them as soon as the judgment declaring the absence becomes final and effective. The code only refers to the fact that the judgment has to be final, which seems to refer to possible appeals from the judgment. But even in the case where an appeal has been introduced and judgment has been confirmed, it does not mean that it is necessarily effective, as the court may postpone the effect for a year under Article 158. But once the judgment is final and effective, the rights can be enforced. Such would be the case, for instance, for all rights conferred to persons in whose favour the absentee had concluded an insurance contract. The beneficiary of the insurance contract can claim payment after the declaration of absence.

But absence is not death in the full sense of the term, and accordingly, the exercise of these person's rights is somewhat limited in the sense that the court may require a guarantee or some other security against the eventual reappearance of the absentee. This guarantee must be provided before the rights are enjoyed and cover only things which could be subject to restitution.

Insofar as duties are concerned (Art. 166), persons who have duties whose performance is bound to the fact that the absentee is alive, shall no longer be bound to perform such duties. This would be, for instance, be the case for all contracts in which the personality of the either parts is of paramount importance for the conclusion of the contract of persons who have the obligation to supply maintenance to the absentee. But the possibility of the absentee's return is taken into account and person who claim to be relieved from their duties may be obliged by the court to provide a guarantee or some other securities.

2. Special Effects of Declaration of absence

The special effects of absence considered in the code are concerned with the problem of marriage, succession and property.

The marriage of all absentee is dissolved on the day on which the judgment of absence becomes final and effective. For all practical purposes, it seems that the provisions of the family codes on the liquidation of pecuniary relation upon the dissolution of marriage shall apply. As for their personal relations it seems that the declaration of absence has the effect of lighting the provision of the various family laws which provides that a person may not conclude marriage if he is bound by a previous marriage. The declaration of absence frees the spouse from his existing marriage and enables him or her to remarry.

The only limitation to the power of remarriage is that the absentee can always impugn the validity of the subsequent marriage when he reappears. The same power is given to the person who proves in an indisputable manner that the absentee is alive

an the day when he institutes the action for dissolution.

The same principle exists concerning property which could devolve by succession upon the absentee after the date of the last news (Art. 164). If a succession opens after that date and if the absentee would have had some rights in the succession the portion of the estate which could have been assigned to him will be attributed to the other heirs of the deceased. Person in whom the share of the absentee devolved will be bound to produce a guarantee or other security in order to safeguard the right of the absentee in case he reappears (Art. 164(2)).

As for as the estate belonging to the absentee at the moment when the last news has been heard is concerned, the devolution and partition will take place among his heirs (Art. 167). If there is a will left by the absentee, this shall be opened at the request of any interested parties. Once the problems of devolution are settled, the property can be partitioned and the heirs and legatees put in to possession of their respective shares.

But this does not mean that these persons have become the full owners of the property of the absentee. Their rights are limited by the law under Articles 168 and 169 which subjects them to four duties:

1. The way in which they can enjoy the absentee's property is not absolute. They must act as a good 'pater familias' to mean as a normally careful and diligent man.
2. If the property is made up of sums of money, this must be invested within these months of the moment they are received.
3. The property of the absentee cannot be transferred to another person gratuitously, unless the possessor wishes to establish the children of the absentee. This is the only case where gratuitous disposition is allowed.
4. The last duty of the possessor is not mandatory. It can be imposed upon them by the court at its discretion. As in other cases where persons

benefit from absence, the court may oblige the possessor to give a guarantee or security for all things which would be subject to restitution in case the absentee should reappear. Such surety or guarantee must be provided before the possessor commences enjoyment over the property.

7.3.2. Germination of Declaration of Absence

Unlike death which has absolute effects, declaration of absence has relative effects and it can be terminated at any time. It can be terminated by two circumstances:-

- ascertainment that the absentee is alive, or
- ascertainment that the absentee is dead.

If the fact that the absentee is alive is proved it will terminate the absence and its effects the life of the absentee is established most satisfactorily by the reappearance of the absentee. In the same way that, under article 5 (2) the best way of proving the existence of a person is to produce him, the reappearance of the absentee is definite evidence that he is alive. But this is not the only indispensable means to terminate the absence. Proof by any means that the absentee was alive on a date subsequent to that of the judgment declaring the absence has also the effect of terminating the absence. What matters here is not the date of the last news but the date of the judgment. It follows therefore that termination of absence will be affected by news received after the judgments of absence.

It can also be established to the satisfaction of the court that the absentee was dead on a date different from that received by the court as being that of the last news. This has, again, the effect of terminating the absence. Here what matters is the date which has been established by the court. In the judgment declaring the absence as the date of last news. If it coincides with the date of death there is no problem. If it does not coincide, one will have to reconsider possible problems of succession in the light of the date of death. But it must be noted that

the discrepancy between the date of last news and the date of death cannot be established by any one after ten years have elapsed since the date of last news indicated in the judgment of absence. Once ten years have elapsed, it is only the absentee himself or a special attorney, which he has appointed after the date of the judgment declaring the absence, who can establish the date of death as being different from that of the last news (Art. 172).

The requirement that the afforner be as special one and appointed after the date of the judgment, are these to ensure beyond all doubt that the absentee did not die on the date of the last news as established in the judgment of absence. This is a result of the need to protect, after a period of ten years, those in possession of the absentee's property, without proof provided by the absentee or by his special attorney, the persons who have been put in possession of the absentee's property may act as having the right which justified them being placed in possession. They are no more limited by the provisions of Articles 168 and 169 (Art. 173).

If the absentee is alive, the consequences are well defined under article 171. The basic principle is that the absentee is reinstated in all his patrimonial rights and duties as they were when he reappears. This includes property which may have been acquired as a result of the obligation to invest sum of money (Art. 168) and all sums of money which have not yet been invested, whether they were originally in this state or are the proceeds of an onerous transfer of some of his original properties. The consequence of this principle is that the income of the property remains the property of the heirs or legatees which have received such income.

If the heirs or legatees have failed in their duties either by not complying with their legal obligations (eg. Arts 168 and 169) or by committing fraud at the expense of the absentee, the absentee, when he reappears, will be entitled to claim compensation from them (Art. 171 (3)). These are the only circumstances under which an action by the returning absentee is possible. No action is

possible in the case where, for example, the heirs or legatees have made mistakes in their administration which do not violate their legal obligation or cannot be considered as fraudulent.

Review Questions

1. What do you think is the importance of the institution of absence?
2. What are the rights and obligations of persons put in possession of the property of the absentee?
3. W/ro Yeshe was married in 1985 she lived happily with her husband Ato Abiyu for six years. One day Ato Abiyu left the house in the evening saying that he was going out to nearby kiosk. Since then nothing has been heard from him. W/ro Yeshe was very much upset for many months. She visited all her husband's relations in search of news of him. In 1995 one of her husband's cousins alleged that he had seen someone on the street who looked like Ato Abiyu. This person was accompanied by a woman and two small girls who resemble Ato Abiyu. W/ro Yeshe was most worried to receive this news. However, in 1998 she met Ato Girma a charming rich man. Ato Girma and W/ro Yeshe wish to get married.

W/ro Yeshe asks you for advice on the question of whether she can have her husband declared absent and also as to what she should do with her husband's property. Advise W/ro Yeshe.

SUPREME IMPERIAL COURT ASMARA

NOVEMBER 23, 1965

Justices :

Ato Haile Arnan

Doctor Giancarlo Poiera

Ato Berhe Sekwar

EZABEL YOUSUF MA TOL ET AL. v. /ABA LOCHIS K:IDIY AS ET AL.

Civil Appeal No. 155/57

Successions- wills - disinheritance - administration of estate - principal residence of deceased. Civ. C. arts. 183, 184, 826(1), 882, 939, 3348, 3355.

On appeal from an action instituted in the High Court to compel administration of the estate to the administrator of the deceased and the 2. Civil Code.

Held: Decision affirmed.

1. The principal residence of a deceased person under Civ. C. art. 826(1) is the person's domicile as defined in Civ. C. art. 183, 184.
2. A public will made abroad prior to the coming into force of the Civil Code is valid under Civ. C. art. 3355 where it complies with the form requirements of Civ. C. art. 882.
3. Where the national law of the deceased permits disinheritance of relatives in conformity with Civ. C. art. 939, the disinherited relatives are not entitled to the

succession.

This case concerns the succession to the estate of the late Woz. Meri Medewar, wife of the late Wadi Habib Medewar, daughter of Yousuf Matin. The fact that the late Mari Medewar and the appellants are children of the same father is not contested. It is also a known fact that the deceased was living in the town of Asmara, Eritrea Teklay Ghiz;at.

It is alleged that 'On August 9, 1947 G.c., the deceased, while in Egypt, appeared before a notary and made a public will in the presence of two witnesses. ~he died in Egypt without returning to Ethiopia.

The testator, in her will of Aug. 9, 1947 G.c., provided that after her death the Syrian Catholic Association in Alexandria would succeed to all her movable and immovable property. She also stipulated that the Association could sell all her immovable property outside Egypt, purchase immovable property in Egypt and establish a welfare Organization as follows:-

1. One part of the property would be used for housing old and disabled persons found in the Syrian Catholic Association in Alexandria;
2. A second part of the property would be used for bringing up the poor orphans who are members of the Syrian Catholic Association in Alexandria;
3. A third part of the property would be used for help and religious service in the Syrian Catholic Church in Alexandria; on Fridays, services would be held in the name of the testator and her late husband; and
4. The representative Patriarch is empowered to execute her will and look after the grave of the testator as well as that of her late husband.

The respondent had petitioned the Egyptian court to empower him to take possession of and administer the estate of the deceased on behalf of the Syrian Catholic Association in Alexandria.

The Egyptian court, in an order given on January 21, 1963 G.c., had empowered the respondent to take over and administer the movable and

immovable property of the deceased for the time being.

However, since the immovable property and its fruits are situated in Asmara, Ethiopia, and since a decision of a foreign court cannot be executed unless it is seen and authorized by the Imperial Ethiopian Government Courts, the respondent submitted the order of the Egyptian Court to the High Court located in this Teklay Ghizat under Probate and Administration file 52/56. On Megabit 24, 1957 (April 2, 1965, G.c.) pursuant to the Courts Proclamation 195/62, the High Court permitted the Reverend Aba Lochis Kidiyas to take possession of and administer the estate of the deceased for the time being.

No appeal has been made on this order.

But Professor Aldo Fornazini, the person who was administering the deceased's

estate under the power of attorney given to him by the brothers and sisters of the deceased, was unwilling to hand over possession of the estate and its fruits to the new administrator. The respondent petitioned the High Court, to compel Professor Aldo Fornazini to hand it over. In an order given on Miazia 16, 1957 (April 24, 1965 G.c.) the High Court directed the present appellants' agent, Professor Aldo Fornazini, to hand over the estate and the accounts from the time he took over as administrator together with any documents concerning the estate to the respondent. The appellant's agent through his attorney had filed an interlocutory appeal to this court under file No. 77/57.

But this court, under a decision given on Miazia 28, 1957 (May 6, 1965 G.C.) rejected the appeal and remanded the file back to the High Court.

The contention of the appellants was that the deceased made her will in Egypt and died there. She was domiciled in Egypt and the litigation concerning the succession was initiated in an Egyptian court. Therefore, the court that has the jurisdiction is the Egyptian court. This contention of the appellant was not found adequate. The High Court found:

1. The fact that the deceased had made her domicile the place where her

main property was situated could be ascertained from the will.

2. Since the immovable property over which the dispute arise is found in Ethiopia, the case must be seen by Ethiopian courts in accordance with the Ethiopian law.

3. Art. 939 of the Ethiopian Civil Code, permits tacit disherison of relatives of the second, third or fourth degree, unless they are ascendants or descendants, therefore, the appellants are not entitled to the succession.

Based on the above findings, the court overruled their contention, declared the will of the deceased valid and dismissed the case.

The appeal was lodged against this judgment.

The grounds of appeal are identical with appellant's contention in the High Court and may be summarised as follows:

The deceased had made Egypt her domicile for about twenty years. She died there. The action concerning the succession was initiated in an Egyptian court and the result is pending there. The appellants can partake of the succession

under the Egyptian law. In accordance with Art. 3348 of the Ethiopian Civil Code and the Italian Civil Code Art. 1123 - 456 - 923 which was in force in the Eritrean Internal Administration at the time the deceased died, any action regarding the succession must be initiated in the court of the place where the deceased was domiciled. Therefore, the decision of the High Court should be reversed on the ground that the Ethiopian courts do not have jurisdiction.

The reply submitted by the respondent contained the following:

1. The deceased and her late husband lived and were domiciled in Asmara for over forty years.

2. Even though the deceased left for Egypt for old age and health reasons, she had explicitly declared in her will that she was a domiciliary of Asmara.

3. Her will was made in accordance with the law before an officer of civil status. This will she had made the Syrian Catholic Association in Alexandria universal legatee for all her property.

As the testator had appointed the representative Patriarch of the Syrian Catholic Association in Alexandria executor of her will, the respondent had petitioned the Ethiopian court to empower him to administer the estate of the deceased pursuant to the testator's will. The respondent did not raise questions before the Ethiopian court concerning the testator's property in Egypt for the appropriate court is the Egyptian Court.

4. The reason why the deceased stated in her will the fact that Egypt was her residence and Ethiopia, the place where her property is situated, her domicile was; beyond any doubt, to confer jurisdiction on Ethiopian Courts regarding succession to her property.

5. The universal legatee of the deceased, the Syrian Catholic Association in Alexandria, came to know about the succession on January 21, 1963, G.C., at which time it applied to the Egyptian Court. By this time the Ethiopian Civil Code was in force in Eritrea. Therefore the applicable law is the Ethiopian Civil Code and not the Italian Civil Code as submitted by the appellants.

6. In accordance with Courts Proclamation 3/1943, Art. 1, Sub-Art. 4, any actions concerning immovable property must be instituted in the court of the place where the immovable property is situated. Where there is dispute concerning a succession, Art 826 of the Ethiopian Civil Code makes it clear that the suit must be instituted at the place where the deceased had his domicile at the time of his death. Art. 183 of the Civil Code makes it clear that the domicile of a person is the place where such person has established the principal seat of his interests and of his business, with the intention of living there permanently.

Therefore, the case must be tried in the court of the place which the testator had chosen as his place of domicile and also in the court of the place where the immovable property is situated. This is not a question of discrepancy between the Italian Law which was in force in Eritrea and the Ethiopian Law, but only a matter of procedure.

7. For example, in order to show that there is no difference between the former law and the present law, it may be appropriate to cite Article 923 of the Italian Civil Code and Art. 826 (1) of the Ethiopian Civil Code. Likewise, Article 16 of the Italian Civil Code and Art. 183 of the Ethiopian Civil Code are identical.

8. Again, comparison of Article 1, Sub. 4(f) of the Courts Procedure Proclamation 3/1943 and Articles 94 and 95 of the Italian Civil Procedure Code, similar Articles 23 and 456, shows that there is no difference between the former law and the present law.

Therefore,

- A. the suit must be instituted in the Ethiopian Courts,
- B. Article 3348 of the Ethiopian Civil Code is inapplicable to this case,
- C. the deceased's will, in accordance with Article 3355 of the Ethiopian Civil Code, is valid under the former and the present law,
- D. from the evidence submitted by the respondent, the law of the nationality of the deceased (the Libyan Republic) is in agreement with Article 939 of the Civil Code of Ethiopia, and
- E. under Art. 939 of the Ethiopian Civil Code the appellants are not entitled to succeed; the decision of the High Court must be affirmed and the appeal of the defendants must be dismissed with costs.

The above arguments reveal the whole matter:

1. The fact that the deceased was a Libyan National and had no children is known.

2. The facts that the deceased and her late husband were living in Ethiopia and that the deceased was the owner of the immovable property which is the subject matter of the suit are also known.

3. Even though the deceased died in 1962 G.c. without coming back to Ethiopia, since she had ascertained in her will of 1947 G.c. that she was a domiciliary of Asmara in the Eritrean Teklay Ghizat, it is beyond doubt that she had established Asmara as her principal seat of her interests with the intention of living there permanently within the meaning of Art. 184 of the Civil Code of Ethiopia.

4. However, not only was the deceased domiciled in Ethiopia, but also her immovable property is found here. In such a case, both under the former law of Ethiopia and Art. 20 of the new Civil Procedure Code any suit concerning immovable property must be instituted in "the court of the place where such property is situated." Nevertheless, the advocate for the appellant argued that the Ethiopian courts do not have power to try the suit. Such a contention is irrelevant and this has surprised the court.

5. The appellant's argument that since the suit is instituted in a foreign court with a result pending, the Ethiopian courts do not have jurisdiction is irrelevant because in accordance with Art. 8(2) of the Civil Procedure Code the pendency of the suit in a foreign court cannot preclude the courts in Ethiopia from taking jurisdiction of the suit when founded on the same cause of action.

6. Since Proclamation 195/62 and Articles 456 and 460 of the Civil Procedure Code make it clear that in the absence of international conventions, judgments and decisions may not be executed in Ethiopia without the authorization of Ethiopian courts, the appellants should not have been surprised.

7. It must be clear that the Ethiopian courts have jurisdiction to try the case

and power to authorize ,the execution of fOTeign decisions submitted to them after finding them final and enforceable.

8. The will was made before a notary in the presence of two witnesses in accordance with Art. 882 of the Civil Code of Ethiopia. So. we have accepted it as a valid will.

9. Since under Art. 939 of the Civil Code of Ethiopia permits tacit disinheritance of Relatives of the second. third or fourth degree. the appellants are not established to ,the succession.

10. From the respondents' written reply. it is clear that under the law of the nationality of the deceased, she can pass her property to anyone she likes provided that she is not survived by any descendants, ascendants or spouse.

11. Since the will as was made for a welfare purpose, that is to say to help the monastery of her country to make sure that her grave and that of her late husband are looked after and religious services held. in their names. there ,s no reason why the will should not be held valid.

For the above reason, we have affirmed the decisions of the High Court and dismissed the case. The appellant shall pay the respondent E\$350 (three hundred and fifty Ethiopian dollars) as costs plus any other costs in accordance with the receipts forwarded by the respondent.

We order .that a copy of this Order be served on the High Court.

Given and delivered in Open Court this 15 day of Hedar 1958 (November 23. 1966 G.c.) in the presence of both parties.